

Description

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Federal Acquisition Regulation (FAR) part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued. HRSA anticipates award and performance to take place late February 2026.

HRSA intends to Award a Sole Source Firm Fixed Price Contract IAW Federal Acquisition Regulation (FAR) Part 12 and 15 procedures, under the authority of FAR 6.103-1: Only one responsible source and no other supplies or services will satisfy agency requirements.

The intended Contractor is United Network For Organ Sharing (UNOS), a nonprofit organization, located at 700 N 4TH ST, RICHMOND, VA 23219 USA.

Competition is not possible as UNOS is the only responsible source capable of performing the migration of the Organ Procurement and Transplantation Network (OPTN) Information Technology (IT) system from the current Nutanix platform to the cloud. No other vendor besides UNOS possesses the access, technical expertise, and operational authority required to migrate the OPTN IT system safely and effectively while preserving the integrity of ongoing operations. The Government's lack of administrative control of the current private cloud environment makes it impossible to direct or oversee migration efforts without UNOS's cooperation. The system's complexity, coupled with its critical public health function, requires that migration be executed by the entity that both owns and operates the current environment to prevent catastrophic service disruptions. Any attempt to have another vendor conduct the migration without UNOS's cooperation would require reverse-engineering the system and reconstructing its proprietary architecture—an action that is not only technically infeasible but would also be cost-prohibitive, fraught with risk, and not in the best interest of the government or the American public. The potential consequences include corruption of data, loss of historical records, interruption of organ-matching operations, and immediate threat to patient safety. As such, UNOS is uniquely qualified and solely capable of executing the migration in a manner that ensures uninterrupted service, data fidelity, and compliance with all operational requirements.

No other contractor or federal entity can execute this transition without risking data loss, system downtime, or direct harm to patient care.

Solicitation number (75R60226R00005) is issued as a request for proposal (RFP) to provide all personnel, management, materials, equipment, and services necessary to migrate the Organ Procurement and Transplantation Network (OPTN) Information Technology (IT) system from the existing private on-premises Nutanix Hyper-Converged Infrastructure (HCI) to a modern, secure, scalable, and resilient cloud-based IT environment that meets current and future operational requirements. The administrative access and controls to the private data center, equipment, and underlying codebase are under the control of United Network For Organ Sharing (UNOS), a nonprofit organization, located at 700 N 4th St, Richmond, VA 23219.

This acquisition is not set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The North American Industry Classification System (NAICS) for this requirement is 541511 Custom Computer Programming Services.

The services required under this action include a comprehensive assessment of the current environment, the design of a target architecture consistent with federal security and reliability standards, and the execution of a phased migration plan for the OPTN system to a public cloud service provider that preserves the integrity, availability, and confidentiality of all OPTN data and operations. The contractor will also provide system stabilization, documentation, and post-migration support to ensure the environment meets federal cybersecurity and operational continuity requirements.

The period of performance of this effort will be 16 months and performance will take place offsite at the Contractor's facility. This period of performance is not inclusive of the Government's ability to utilize

FAR 52.217-8.

Provisions by reference:

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its offer. In lieu of submitting the full text of these provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its offer.

52.204-19 Incorporation by Reference of Representations and Certifications (DEC 2014)

Provision incorporated as full text:

FAR 52.209-7 Information Regarding Responsibility Matters (NOV 2025)

(a) Definitions. As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the Offeror checked “has” in paragraph (b) of this provision, the Offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the Offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the Offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the Offeror has provided the requested information with regard to each occurrence.

(d) The Offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

Submission requirements

For offerors other than UNOS: OPTN system is deployed within a virtualized computing environment under the control of UNOS in a private facility. UNOS is the only entity who can grant safe and secure logical access to the OPTN system environment, including system-level, application-level, network, and administrative access for the performance of this work. Such access must be strictly limited to the scope, duration, and conditions of the migration effort and must not jeopardize ongoing system services, OPTN operations, or patient safety.

UNOS is a private entity, and any other offerors must not expect the Government to facilitate the acquisition of required permissions or access. Technical data required to respond will not be furnished as part of the solicitation. Other offerors must make their own arrangement with UNOS to gain access to technical data and execute the work with mutual cooperation. The OPTN services relying on the IT system must be continued in an uninterrupted fashion with no additional risk to the government and the public.

Special Responsibility Standard:

Offeror must have necessary permissions and access to UNOS proprietary systems to allow work to commence immediately upon award. Other offerors are responsible for making all necessary arrangements with UNOS and must furnish proof that an agreement that provides for necessary permissions or access and that allows work to commence immediately upon award. Failure to provide this proof will result in a finding of a non-responsibility, and non-responsible offerors will not be evaluated further or considered for award.

For all offerors: All responsible sources may submit a proposal which will be considered by the agency. Proposals must be received by 9AM, EST on February 20, 2026. Responses must be sent via email to the following point of contact.

Stephanie Petrone

Contracting Officer

801 Market Street Philadelphia, PA 19107

Spetrone@hrsa.hov

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services.

(NOV 2025)

Instructions to Offerors—Commercial Products and Commercial Services (NOV 2025)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

52.212-2 Evaluation—Commercial Products and Commercial Services.

As prescribed in 12.205(a)(2), insert a provision substantially as follows:

Evaluation—Commercial Products and Commercial Services (Deviation Date)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Basis upon which award will be made:

Factor 1: Technical Approach

Subfactor 1: Azure Migration Approach

Factor 2: Past Performance

Factor 3: Price

Best Value – Tradeoff analysis will be used to make an award decision. Factors 1–3 are listed in descending order of importance. Factor 1 (Technical Approach) is the most important, followed by Factor 2 (Past Performance). When combined, Factors 1–2, are significantly more important than Factor 3 (Price).

The evaluation of Factor 1 (Technical Approach) will be conducted using confidence ratings, representing the Government’s confidence that the Offeror understands the requirement and will be successful in performing the work in the PWS.

The evaluation of Factor 2 (Past Performance) will be conducted using adjectival ratings.

Factor 3 (Price) will be evaluated to ensure fair and reasonableness in accordance with the criteria listed in Section M.

Award of the contract resulting from this solicitation will be made to the responsible offeror whose proposal offers the best value to the government, in full compliance to all other requirements set forth in this RFP.

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer’s specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

SECTION B – SUPPLIES OR SERVICES AND PRICES/COSTS

B.1 Purpose of Contract

The purpose of this contract is to provide all personnel, management, materials, equipment, and services necessary to migrate the Organ Procurement and Transplantation Network (OPTN) Information Technology (IT) system from the existing private on-premises Nutanix Hyper-Converged Infrastructure (HCI) to a modern, secure, scalable, and resilient cloud-based IT environment that meets current and future operational requirements. The administrative access and controls to the private data center, equipment, and underlying codebase are under the control of United Network For Organ Sharing (UNOS), a nonprofit organization, located at 700 N 4th St, Richmond, VA 23219.

B.2 Contract Type

This is a Firm-Fixed Price Contract for a duration of sixteen (16) months in total. This performance period is not inclusive of the Government's ability to utilize FAR 52.217-8.

SECTION C – DESCRIPTION / SPECIFICATIONS

C.1 Performance Work Statement

Independently and not as an agent of the Government, the contractor shall furnish all personnel, material, facilities, services, and equipment as needed to perform the services under this contract and as set forth in Section J, Attachment A – Performance Work Statement (PWS) and made part of this contract.

SECTION D – PACKAGING AND MARKING

All reports and documents shall have, at a minimum in the document header, the contract number, and the COR's name. All reports and documents shall have, at a minimum in the document footer, the author in the lower left corner, the page # of total # of pages in the center bottom of the page, and the date and /or version of the document (not the auto date) in the lower right corner.

The contractor shall deliver all items at the time indicated in the Deliverables Schedule. All

deliverable reports are to carry at the top of the first page the following information:

1. Contract number
2. Deliverable item number
3. Deliverable item delivery due date
4. Date of submission

SECTION E – INSPECTION AND ACCEPTANCE

E.1 Notice Listing Contract Clauses Incorporated by Reference

The following contract clauses pertinent to this section are hereby incorporated by reference in accordance with the clause at FAR 52.252-2, Clauses Incorporated by Reference, in Section I of this contract.

FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)		
Number	Title	Date
52.246-4	Inspection of Services-Fixed-Price	AUG 1996

E.2 Inspection and Acceptance

In accordance with FAR 52.246-4 Inspection of Services-Fixed-Price, inspection of results or other deliverables required by the contract shall be made by the cognizant Contracting Officer Representative (COR), as a duly authorized representative of the Contracting Officer. The COR shall assume the responsibilities for monitoring contractor performance, evaluating the quality of services provided by the contractor and performing final inspection and acceptance of all deliverables. Acceptance of services and deliverables by the cognizant COR must form the basis for payments to the contractor and will also form the basis of the contractor's permanent performance records with regard to the contract.

E.3 Quality Assurance Surveillance Plan (QASP)

The Government will monitor the Contractor's performance under this contract in accordance with the QASP.

The contractor shall perform all the requirements identified in this contract. The contractor shall supervise the reviews in accordance with Government Auditing Standards. The COR shall review and approve all work products and deliverables submitted by the contractor in accordance with the terms and conditions identified under this contract.

The contractor shall maintain an internal quality control program adequate to ensure that the requirements of the contract are met. HRSA reserves the right to obtain and review all working papers associated with the contractor's internal quality control program. These reviews shall be conducted at HRSA's site, the working papers will be sent to the HRSA office for review and evaluation by HRSA staff. After completion of the review, HRSA may hold a conference with the contractor to discuss any issues. HRSA may choose to visit the contractor and/or the subcontractor's site during the review to assess performance of the reviews.

SECTION F – DELIVERIES OR PERFORMANCE

F.1 Schedule of Deliverables

The contractor shall ensure all products and services delivered under this contract are compliant with Section 508 in accordance with the Health and Human Services Acquisition Regulation (HHSAR). These Section 508 Standards were issued by the United States Access Board (<https://www.access-board.gov/>) and published in the Federal Register, on January 18, 2017, as the final rule (<https://www.access-board.gov/ict/>). The final rule updates the Section 508 Standards along with accessibility guidelines for telecommunication products and equipment covered by section 255 of the Communications Act.

The Section 508 Standards applicable to this contract are:

Section 508 Standards and Guidelines (<https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>)

Web Content Accessibility Guidelines (WCAG) 2.0 Success Criteria, Level A and AA

Chapter 3: Functional Performance Criteria (FPC) Chapter 4: Hardware (If Applicable)

Chapter 5: Software

Chapter 6: Support Documentation and Services

Section 508 requires that all external public facing content and non-public facing official agency communications be accessible. Regardless of format, all digital content or communications materials produced as deliverables under this contract must conform to applicable Section 508 standards to allow federal employees and members of the public with disabilities to access information that is comparable to information provided to persons without disabilities.

The contractor shall complete and submit the applicable HHS Section 508 Accessibility Compliance Checklist per Section 508 deliverable. The checklist will serve as an artifact declaration of the Section 508 deliverable's compliance. Remediation of any Section 508 deliverables that do not comply with the applicable requirements as set forth below shall be the contractor's responsibility.

HHS guidance and checklists regarding accessibility of documents can be found at <https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>.

The HHS Section 508 Product Assessment Template (PAT) that is referenced above in 352.239-73 Electronic Information and Technology Accessibility Notice, Paragraph (c), has been replaced with the Voluntary Product Accessibility Template Version (VPAT) 2.4 or later, and is considered to meet HHS PAT requirement. The new form can be downloaded from <https://www.itic.org/policy/accessibility/vpat>.

NOTE: ICT vs. EIT

Procurement documentation from HHS or other agencies may contain references to "EIT" (Electronic and Information Technology) and "ICT" (Information and Communications Technology). HHS considers these terms to be interchangeable, and "EIT" should always be interpreted to be "ICT" in any HHS procurement.

F.2 Reporting Requirements and Deliverables

The Contractor shall submit the items in quantities and during the time periods indicated above to the following address or electronically as mutually agreed upon in the performance work

statement.

F.3 Payment Schedule

Task	Deliverable	NLT Delivery Date	Price
5.1.A	Discovery & Migration Assessment Report	90 Days After Contract Award	\$
5.1.B	Azure Landing Zone and System Architecture Document	90 Days After Contract Award	\$
Milestone Invoice 1 Total			\$
5.1.C	Comprehensive Migration Plan	90 Days After Contract Award	\$
Milestone Invoice 2 Total			\$
5.2.B	IaC Deployment Scripts and Configuration Baselines	150 Days After Contract Award	\$
Milestone Invoice 3 Total			\$
5.2.C	Comprehensive Migration Plan	150 Days After Contract Award	\$
Milestone Invoice 4 Total			\$
5.2.D	Disaster Recovery and Failover Validation Report	150 Days After Contract Award	\$
5.3.B	Migration Execution Plan and Logs	270 Days After Contract Award	\$
5.3.D	Cutover Plan and Completion Certificate	270 Days After Contract Award	\$
5.3.E	Post-Migration Audit Report and Updated Security Docs	270 Days After Contract Award	\$
Milestone Invoice 5 Total			\$
5.4.A	Post-Migration Validation Report	270 Days After Contract Award	\$
5.4.B	Security Authorization Package (SSP, SAP, SAR, POA&M)	390 Days After Contract Award	
5.4.C	Training and Knowledge Transfer Materials	390 Days After Contract Award	
5.4.D	Optimization and Cost Report	390 Days After Contract Award	
5.4.E	Final Stabilization Report	390 Days After Contract Award	
Milestone Invoice 6 Total			\$
Grand Total Milestone Payments			\$
Task	Program Management Deliverables	Delivery Date	Monthly Price
4.2	Draft Quality Control Plan (QCP)	10 Business Days After Contract Award	\$
4.2	Final Quality Control Plan	10 Business Days After Receipt of COR Feedback	
5.5.a	Kick Off Meeting Agenda	2 Business Days Before Kick-Off Meeting	
5.5.a	Meeting Minutes	2 Business Days After Kick-Off Meeting	
5.5.b	Draft Project Management Plan (PMP)	Provided with proposal submission and updated 5 Business Days After Kick-Off Meeting	
5.5.b	Final Project Management Plan (PMP)	2 Business Days After Receipt of COR Feedback	
5.5.c	Weekly Conference Call Agenda	1 Business Day Before Each Call	
5.5.c	Weekly Conference Call Summary	2 Business Days After Each Meeting	

5.5.c	Draft Quarterly Progress Report	5 Business Days After the End of the Prior Quarter	
5.5.c	Final Quarterly Progress Report	5 Business Days After Receipt of COR Feedback	
5.5.c	Draft Quarterly Progress Meeting Agenda	2 Business Day Before Each Meeting	
5.5.c	Final Quarterly Progress Meeting Agenda	5 Business Days After Receipt of COR Feedback	
5.5.c	Draft Quarterly Progress Report	5 Business Days After the End of the Prior Quarter	
5.5.c	Final Quarterly Progress Report	5 Business Days After Receipt of COR Feedback	
5.5.c	Draft Report	30 Days Before the End of the Contract	
5.5.c	Final Report	5 Business Days After Receipt of COR Feedback	
Grand Total Program Management Deliverables			TOTAL

Task	Documentation Update Deliverables	Delivery Date	Monthly Price
5.2.A	Monthly Updates to Security and Compliance Documentation	5 Business Days After the End of the Prior Month	\$
5.2.E	Monthly Updates to Access Control Matrix (ACM)	5 Business Days After the End of the Prior Month	
5.2.E	Monthly Updates to Configuration Management Plan (CMP)	5 Business Days After the End of the Prior Month	
5.2.F	Monthly Updated to Tenant Hardening Implementation Report	5 Business Days After the End of the Prior Month	
5.3.A	Monthly Updates to Security Authorization (ATO) Package	5 Business Days After the End of the Prior Month	
5.3.C	Monthly Testing and Validation Reports	5 Business Days After the End of the Prior Month	
5.3.F	Monthly Updates to Change Control and Configuration Logs	5 Business Days After the End of the Prior Month	
Grand Total Documentation Update Deliverables			TOTAL

Task	Tenant Build Monthly Updates	Delivery Date	Monthly Price
5.1.10	Monthly Updates to Tenant Build	5 Business Days After the End of the Prior Month	\$
Grand Total Tenant Build Deliverables			TOTAL
Grand Total All Taskings			TOTAL

Optional Task- Discovery of Real-Time Data Integration			
Task	Tenant Build Monthly Updates	Delivery Date	Price
4.3.4.5	Optional Task- Discovery of Real-Time Data Integration		\$
Grand Total Optional Task			\$

SECTION G – CONTRACT ADMINISTRATION DATA

G.1 Designation of Contracting Officer Representative (COR)

The person identified below is hereby designated as the Contracting Officer Representative (COR). This contract designates a COR to ensure the technical objectives are met. The COR shall provide the necessary information, direction, coordination, within the contractual work description.

COR

Emily Graham

U.S. Dept. of Health and Human Services Health Resources and Services Administration 5600 Fishers Lane

Rockville, MD 20857

Phone Number: 240-393-6198 Email:

EGraham@hrsa.gov

G.2 Contracting Officer's Representative's Responsibility

1. Technical Direction

The COR will provide the necessary information, direction, and coordination within the confines of the existing contractual work description in order for the contract to have a successful outcome for the government.

This includes providing technical direction to the contractor to guide the contract effort in order to accomplish the contractual performance work statement. This may include providing information to the contractor for assistance in the interpretation of government provided information, specifications or technical portions of the work description, and where required by the contract, review and approval of product deliverables of the contractor to the Government under the contract.

2. Contract Progress and Performance Management

The COR will be responsible for preparing performance evaluations in accordance with FAR 42.1502.

G.3 Restrictions on the Contracting Officer's Representative's Authority

Direction given by the COR to the contractor must be within the parameters of the Attachment A, Performance Work Statement (PWS) as stated in the Contract.

The COR may not issue any direction to the contractor that:

1. Solicits a proposal, or
2. Constitutes an assignment of additional work outside the performance work statement of this Contract, or

3. In any manner causes an increase in the total contract cost or the time required for contract performance, or
4. Changes any of the express terms, conditions, or specifications of the Contract (e.g., changes in the price or scope of work, instructions to start or stop work, approval of any actions that will result in additional charges to the government).

Issuance of changes that affect the articles, terms, or conditions of this contract will be accomplished through the Contracting Officer, who is the only party who can determine if a direction is within the PWS.

G.4 Key Personnel

Pursuant to HHSAR clause 352.242-70, Key Personnel, referenced in Section I of this contract, the following position is designated as Key Personnel and considered to be essential to the work being performed under this contract:

Key Personnel for the contract:

Project Manager:

Responsible for, at a minimum:

- Accomplishing the administrative, managerial, technical, and financial aspects of this Contract.
- Is a direct liaison to the COR and attends regular check-in meetings.
- Has a full understanding of the work requirements, technical approach, and labor categories.
- Is responsible for the technical direction, supervision and management of the contractor's personnel.
- Submits a written Quality Control Plan (QCP); implements and maintains effective quality control.
- Submits Quarterly progress reports

Prior to removing, replacing, or diverting the specified individual above, the Contractor shall notify the CO in writing immediately, and shall submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on the contract. No diversion shall be made by the Contractor without the written consent of the CO, provided that the CO may ratify in writing changes made due to events beyond the control of the Contractor, and such ratification shall constitute the consent of the CO required by this clause. Examples of events beyond the control of the Contractor are: (1) prolonged sickness, (2) termination of employment, and (3) death. Key personnel, with the consent of the CO, may be amended from time to time during the course of the contract to either add or delete personnel, as appropriate.

G.5 Staffing Requirements

In performing duties under this contract, all personnel shall act in a professional manner. The general responsibilities of all contract personnel are as follows:

1. Consistently exhibit teamwork (including with other vendors) and provides best value for customers by improving the quality of customer interaction and communication, and internally improving communication to increase the quality and value of service provided.
2. Demonstrate proactive behavior, provides timely responsiveness, and exhibits a sense of ownership and commitment in all dealings.
3. Consistently perform timely follow through to ensure quality completion of customer actions. Actively engages in customer partnering sessions and lessons learned sessions. On a regular basis, shows initiative in problem identification and resolution.
4. Maintain the integrity and security of federally-owned property, including equipment, supplies, and information technology related hardware, software and data.
5. Effectively plan, organize, and prioritize work to accommodate agreed to dates/timelines as noted in the contract and produce clear and effective results of acceptable quality.
6. Refer new or unusual circumstances in a timely manner to the COR for guidance.

G.6 Evaluation of Contractors Performance

Interim and final evaluation of contractor performance on this contract shall be conducted in accordance with FAR Subpart 42.15 and entered into the Contractor Performance Assessment Reporting System (CPARS) found at www.cpars.gov (see Section J, Attachment D, CPARS Information Sheet).

G.7 Electronic Invoicing and Payment Requirements – Invoice Processing Platform (IPP)

All Invoice submissions for goods and or services delivered to facilitate payments must be made electronically through the U.S. Department of Treasury's Invoice Processing Platform System (IPP).

Invoice Submission for Payment means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial items contracts. The IPP website address is: <https://www.ipp.gov>.

The Department of Treasury will enroll the Contractors new to IPP. The Contractor must follow the IPP registration email instructions for enrollment to register the Collector Account for submitting invoice requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive Registration email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 to 5 business days of the contract award for new contracts or date of modification for existing contracts.

Registration emails are sent via email from ipp.noreply@mail.eroctwai.gov. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email to IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

The Contractor POC will receive two emails from IPP Customer Support, the first email contains the initial administrative IPP User ID. The second email, sent within 24 hours of receipt of the first email, contains a temporary password. You must log in with the temporary password within 30 days.

If your company is already registered to use IPP, you will not be required to re-register.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment as authorized by HHSAR 332.7002, a written request must be submitted to the Contracting Officer to explain the circumstances that require the authorization of alternate payment procedures.

Additional HRSA Invoice Requirements

(i) The contractor shall submit invoices under this contract as specified in the payment schedule.

SECTION H – SPECIAL CONTRACT REQUIREMENTS

H.1 Minimum Eligibility Requirements

Offerors submitting proposals for the contract shall be subject to certain restrictions due to the organizational conflict of interest concerns detailed in Section H.2. Offeror must be able to perform as an independent and separate contractor from other OPTN contractor(s). For the purposes of this contract, this means that the contractor is neither financially nor operationally dependent, in whole or in part, on the OPTN Board of Directors (BOD) Support IDIQ contractor or subsidiary. This includes not being a Prime or subcontractor on any OPTN Board of Directors (BOD) Support IDIQ contract or Task Order for the life of the contract.

H.2 Organizational Conflict of Interest (OCI)

H.2.1 PRE-AWARD ORGANIZATIONAL CONFLICT OF INTEREST

General: In accordance with FAR Subpart 9.5, all contractors submitting proposals in response to this solicitation must:

- (1) Identify any actual, potential or perceived organization conflicts of interest or, in the absence of such conflicts, represent that no such organizational conflicts of interest exist.
- (2) If any perceived organizational conflict is identified, provide an explanation why an actual or potential organizational conflict of interest does not exist.
- (3) If any actual or potential organizational conflict exists, include a mitigation plan for addressing the conflict.

Disclosure: The contractor may be disqualified from award if it fails to provide or makes any misrepresentation in connection with required OCI disclosures. The contractor shall disclose all OCIs that arise during the solicitation.

The contractor is required to flow down to its subcontractor OCI restrictions. Misrepresenting or failing to disclose information related to OCIs may result in termination for default, debarment, prosecution for making of false statement, or other severe consequences.

In addition, given the work required under the OPTN Board of Directors (BOD) Support contract, a perceived organizational conflict has been identified for Offerors wishing to propose to the OPTN IT System Cloud Migration contract. The services and products under this contract shall be independent and beyond the question of integrity. It is perceived that the performance of these OPTN services impairs the Contractor's objectivity of one another; therefore, the OPTN IT System Cloud Migration contractor, including Offerors for this solicitation, are prohibited from performing any services in support of the OPTN BOD Support contract for the duration of the contract.

Resolution: In the event the Contracting Officer determines that a conflict of

interest exists, the Contracting Officer shall take action which may include requesting a mitigation plan from the Contractor, terminating part or all of the contract, modifying the contract or obtaining a waiver in accordance with FAR 9.503, as applicable.

H.2.2 POST-AWARD ORGANIZATIONAL CONFLICT OF INTEREST

Ongoing Contractor Monitoring and Mitigation: The Contractor shall have programs in place to identify, report to HRSA, and mitigate actual and potential organizational conflicts of interest for itself, its employees, subcontractors and consultants. Any proposed mitigation plans must be approved by HRSA. The existence of such programs and the disclosure of known actual or potential conflicts are material performance requirements of this contract.

Disclosure and Reporting to HRSA: The Contractor shall report all actual and potential organizational conflicts of interest pertaining to this contract to the Contracting Officer immediately upon notice, including those that would be caused by a contemplated modification to this contract or another contract. Such reports shall be in writing (including by email). Upon request, the Contractor shall respond to a Contracting Officer's request for an OCI mitigation plan.

Resolution: In the event the Contracting Officer determines that an actual or apparent organizational conflict of interest exists, based on disclosure from the Contractor or from other sources, the Contracting Officer shall take action which may include requesting a mitigation plan from the Contractor for HRSA's review and approval, terminating part or all of the contract, modifying the contract or obtaining a waiver in accordance with including FAR 9.503 as applicable.

H.3 Use of Appropriated Funds to acquire Food/Light Refreshments

It is the Department's policy that appropriated funds (whether from an annual appropriation, multi-year appropriation, appropriated user fee, mandatory appropriation, gift funds, or reimbursements from such appropriations, etc.) shall not be used to purchase food (whether for conferences or meetings; for meals, light refreshments, or beverages) for federal or nonfederal participants.

H.4 Subcontracting Plan and Reporting

The Contractor's subcontracting plan dated **TBD** is hereby incorporated as a material part of this contract as an attachment **[to be inserted at time of award]**.

Subcontracting reports must be submitted stemming from this contract. HRSA requires reporting to be completed in the electronic Subcontracting Reporting System (eSRS). The requirement to report use of subcontractors in the new eSRS applies to any contract in which there is a subcontracting plan to utilize U.S. small businesses. More information is available at the official website at <http://www.esrs.gov>. Please note that contract data in eSRS is tied to the SAM EUI number of records. When submitting

your individual and summary reports in eSRS, please be sure to include the email address of the Contracting Officer (CO).

SECTION I – CONTRACT CLAUSES

Contract Clauses incorporated by reference

The following contract clauses pertinent to this section are hereby incorporated by reference in accordance with the clause at FAR 52.252-2, Clauses Incorporated by Reference, in Section I of this contract. Full text of the FAR clauses is available at <https://www.acquisition.gov>.

Number Title Date

52.202-1 Definitions JUN 2020
52.203-3 Gratuities APR 1984
52.203-5 Covenant Against Contingent Fees MAY 2014
52.203-6 Restrictions on Subcontractor Sales to the Government
Alternate 1 JUN 2020 52.203-7 Anti-Kickback Procedures JUN 2020
52.203-8 Cancellation, Rescission, and Recovery of Funds for Illegal Or
Improper Activity MAY 2014
52.203-10 Price or Fee Adjustment for Illegal or Improper Activity MAY 2014
52.203-12 Limitation of Payments to Influence Certain Federal
Transactions JUN 2020 52.203-13 Contractor Code of Business Ethics
and Conduct NOV 2021
52.203-17 Contractor Employee Whistleblower Rights and
Requirement To Inform Employees of Whistleblower Rights NOV
2023
52.203-18 Prohibition on Contracting with Entities that Require
Certain Internal Confidentiality Agreements or Statements –
Representation JAN 2017
52.203-19 Prohibition on Requiring Certain Internal Confidentiality
Agreements or Statements JAN 2017
52.204-9 Personal Identity Verification of Contractor Personnel JAN 2011
52.204-10 Reporting Executive Compensation and First-Tier Subcontract
Awards NOV 2025
52.204-13 System for Award Management Maintenance NOV 2025
52.204-15 Service Contract Reporting Requirements for Indefinite
Delivery Contracts NOV 2025
52.204-91 Contractor Identification NOV 2025
52.209-6 Protecting the Government’s Interest When Subcontracting
with Contractors Debarred, Suspended, or Proposed for Debarment or
Voluntarily Excluded NOV 2025 52.209-9 Updates of Publicly
Available Information Regarding Responsibility Matters NOV 2025
52.209-10 Prohibition on Contracting with Inverted Domestic
Corporations NOV 2025 52.210-1 Market Research NOV 2025
52.212-4 Contract Terms and Conditions—Commercial Products
and Commercial Services NOV 2025
52.215-2 Audit and Records—Negotiation NOV 2025
52.215-8 Order of Precedence—Uniform Contract Format NOV 2025
52.215-18 Reversion or Adjustment of Plans for Postretirement Benefits
(PRB) Other Than Pensions NOV 2025
52.215-19 Notification of Ownership
Changes NOV 2025 52.215-23 Limitations

on Pass-Through Charges NOV 2025
52.217-4 Evaluation of Options Exercised at Time of Contract
Award NOV 2025 52.219-8 Utilization of Small Business
Concerns NOV 2025
52.219-9 Small Business Subcontracting Plan NOV 2025
52.219-16 Liquidated Damages - Subcontracting Plan NOV 2025
52.219-28 Post-Award Small Business Program Representation NOV 2025
52.222-3 Convict Labor NOV 2025
52.222-35 Equal Opportunity for Veterans NOV 2025
52.222.36 Equal Opportunity for Workers with
Disabilities NOV 2025 52.222-37 Employment
Reports on Veterans NOV 2025
52.222-40 Notification of Employee Rights Under the National Labor
Relations Act NOV 2025
52.222-41 Service Contract Labor Standards NOV 2025
52.222-42 Statement of Equivalent Rates for Federal Hires MAY 2014
52.222-44 Fair Labor Standards Act and Service Contract Labor
Standards—Price Adjustment NOV 2025
52.222-50 Combating Trafficking in
Persons NOV 2025 52.222-54
Employment Eligibility Verification NOV
2025
52.222-55 Minimum Wages Under Executive Order
14026 NOV 2025 52.222-62 Paid Sick Leave Under
Executive Order 13706 NOV 2025 52.224-1 Privacy
Act Notification APR 1984
52.224-2 Privacy Act APR 1984
52.224-3 Privacy Training JAN 2017
52.226-1 Utilization of Indian Organizations and Indian-Owned
Economic Enterprises NOV 2025
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While
Driving MAY 2024
52.227-1 Authorization and Consent JUN 2020
52.227-2 Notice and Assistance Regarding Patent and Copyright
Infringement JUN 2020 52.227-14 Rights in Data—General MAY 2014
52.228-7 Insurance—Liability to Third
Persons MAR 1996 52.229-3 Federal,
State, and Local Taxes JULY 2025
52.232-1 Payments APR 1984
52.232-8 Discounts for Prompt Payment FEB 2002
52.232-9 Limitation on Withholding of
Payments APR 1984 52.232-11 Extras APR
1984
52.232-15 Progress Payments Not
Included APR 1984 52.232-17
Interest MAY 2014
52.232-23 Assignment of Claims MAY 2014
52.232-25 Prompt Payment JAN 2017
52.232-33 Payment by Electronic Funds Transfer – System for
Award Management OCT 2018
52.232-39 Unenforceability of Unauthorized Obligations JUN 2013

52.232-40 Providing Accelerated Payments to Small Business
Subcontractors MAR 2023 52.233-1 Disputes NOV 2025
52.233-3 Protest after Award NOV 2025
52.233-4 Applicable Law for Breach of Contract
Claim NOV 2025
52.242-5 Payments to Small Business
Subcontractors JAN 2017 52.242-13 Bankruptcy
JUL 1995
52.243-1 Changes-Fixed-Price NOV 2025
52.244-2 Subcontracts JUN 2020
52.244-5 Competition in Subcontracting AUG 2024
52.244-6 Subcontracts for Commercial Products and
Services NOV 2025 52.245-1 Government Property SEP
2021
52.245-9 Use and Charges APR 2012
52.246-4 Inspection of Services-Fixed-Price AUG 1996
52.246-25 Limitation of Liability—Services FEB 1997
52.253-1 Computer Generated Forms

NOV 2025 Contract Clauses

incorporated with full text

FAR 52.252-5 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Health and Human Services Acquisition Regulation (48 CFR Chapter 3) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

2025) 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (NOV

(a) Definitions. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public

(such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements.

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

FAR 52.217-5, Evaluation of Options (NOV 2025)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

FAR 52.217-7 Option for Increased Quantity-Separately Priced Line Item (Mar 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within *60 days*. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

FAR 52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days.

Department of Health and Human Services Acquisition Regulation (HHSAR) Clauses by Reference

HHSAR (48 CFR Chapter 3) clauses can be found at
<https://www.hhs.gov/grants-contracts/contracts/contract-policies-regulations/hhsar-overhaul/index.html>

352.203-70	Anti-Lobbying DEC 2015	
352.208-70	Printing and Duplication DEC 2015	
352.211-1	Public Accommodations and Commercial Facilities	NOV 2025
352.211-3	Paperwork Reduction Act NOV 2025	
352.224-70	Privacy Act DEC 2015	
352.237-74	Non-Discrimination in Service Delivery DEC 2015	
352.222-70 Investigations	Contractor Cooperation in Equal Employment Opportunity DEC 2015	
352.227-70	Publications and Publicity DEC 2015	
352.232-71	Electronic Submission of Payment Requests	FEB 2022
352.237-75	Key Personnel DEC 2015	
352.239-73	Electronic Information and Technology Accessibility Notice DEC 2015	

Department of Health and Human Services Acquisition Regulation (HHSAR) Clauses with full text

HHSAR 352.224-71 Confidential Information (DEC 2015)

- (a) Confidential Information, as used in this clause, means information or data of a personal nature about an individual, or proprietary information or data submitted by or pertaining to an institution or organization.
- (b) Specific information or categories of information that the Government will furnish to the Contractor, or that the Contractor is expected to generate, which are confidential may be identified elsewhere in this contract. The Contracting Officer may modify this contract to identify Confidential Information from time to time during performance.
- (c) Confidential Information or records shall not be disclosed by the Contractor until:
 - (1) Written advance notice of at least 45 days shall be provided to the Contracting Officer of the Contractor's intent to release findings of studies or research, to which an agency response may be appropriate to protect the public interest or that of the agency.
 - (2) For information provided by or on behalf of the government,

- (i) The publication or dissemination of the following types of information are restricted under this contract: personally identifiable information about patients and donors.
 - (ii) The reason(s) for restricting the types of information identified in subparagraph (i) is/are: maintain patient and donor confidentiality and safety.
 - (iii) Written advance notice of at least 45 days shall be provided to the Contracting Officer of the Contractor's intent to disseminate or publish information identified in subparagraph (2)(i). The Contractor shall not disseminate or publish such information without the written consent of the Contracting Officer.
- (d) Whenever the Contractor is uncertain with regard to the confidentiality of or a property interest in information under this contract, the Contractor should consult with the Contracting Officer prior to any release, disclosure, dissemination, or publication.

HHSAR 352.237-75 Key Personnel (DEC 2015)

The key personnel specified in this contract are considered to be essential to work performance. At least 30 days prior to the contractor voluntarily diverting any of the specified individuals to other programs or contracts the Contractor shall notify the Contracting Officer and shall submit a justification for the diversion or replacement and a request to replace the individual. The request must identify the proposed replacement and provide an explanation of how the replacement's skills, experience, and credentials meet or exceed the requirements of the contract (including, when applicable, Human Subjects Testing requirements). If the employee of the contractor is terminated for cause or separates from the contractor voluntarily with less than thirty days notice, the Contractor shall provide the maximum notice practicable under the circumstances.

The Contractor shall not divert, replace, or announce any such change to key personnel without the written consent of the Contracting Officer. The contract will be modified to add or delete key personnel as necessary to reflect the agreement of the parties.

352.239-71 SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES (FEB 2024) (DEVIATION)

(a) Definitions. As used in this clause—

Information technology has the same meaning in FAR 2.101.

Information and communication technology (ICT) also means information technology (see FAR 2.101 for definitions).

Information system security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

(b) Responsibilities. The Contractor shall be responsible for information technology security for all systems connected to a Department of Health and Human Services (HHS) network or operated by the Contractor for HHS, regardless of location. This clause is applicable to all or any part of the contract that includes information technology resources or services in which the Contractor has physical or other system access to HHS

information that directly supports the mission of HHS. Examples of tasks that require security provisions include—

- (1) Hosting of HHS e-Government sites or other information technology operations;
- (2) Acquisition, transmission, or analysis of data owned by HHS with significant replacement cost should the contractor's copy be corrupted; and
- (3) Access to HHS general support systems/major applications at a level beyond that granted the general public, e.g., bypassing a firewall.

(c) Information system security plan. The Contractor shall develop, provide, implement, and maintain an Information System Security Plan. HHS information system and platform information technology systems must have a security plan that provides an overview of the security requirements for the system and describes the security controls in place or the plan for meeting those requirements. Generally, this plan shall describe the processes and procedures that the Contractor will follow to ensure appropriate security of information system resources developed, processed, or used under this contract. The security plan should include implementation status, responsible entities, resources, and estimated completion dates. Security plans may also include, but are not limited to, a compiled list of system characteristics or qualities required for system registration, and key security-related documents such as a risk assessment, privacy impact assessment (PIA), system interconnection agreements, contingency plan, security configurations, configuration management plan, incident response plan, and the

system privacy plan, as determined by the Contracting Officer's Representative. The plan shall address the specific contract requirements regarding information systems or related support or services included in the contract, to include the PWS or SOW. The Contractor's Information System Security Plan shall comply with applicable Federal Laws that include, but are not limited to, 40 U.S.C. 11331, the Federal Information Security Modernization Act (FISMA) of 2014 and the E-Government Act of 2002. The plan shall meet information technology security requirements in accordance with Federal and HHS policies and procedures, and as amended during the term of this contract, and include, but are not limited to the following:

- (1) OMB Circular A-130, Managing Information as a Strategic Resource;
- (2) National Institute of Standards and Technology (NIST) Guidelines;
- (3) Federal Information Processing Standard (FIPS) 200; and
- (4) HHS Cybersecurity Program related to HHS information (including HHS sensitive information and information systems security and privacy), as well as those set forth in the contract specifications, statement of work, or performance work statement. These include, but are not limited to, the Cyber Security Checklist and Cyber Security Infographic at <https://www.hhs.gov/hipaa/for-professionals/security/guidance/cybersecurity/index.html>, which provides HHS procedures, responsibilities, and processes for complying with current Federal law, Executive Orders, policies, regulations, standards and guidance for protecting HHS information, information systems (see 302.101, Definitions), information technology, and ICT, security and privacy, and adhering to personnel security requirements when accessing HHS information or information systems.

- (d) Submittal of plan. Within 60 days after contract award, the Contractor shall submit

the Information System Security Plan to the Contracting Officer for review and approval.

(e) Authority to Operate (ATO). As required by current HHS policy, the Contractor shall submit written proof of information technology security accreditation with a valid ATO to the Contracting Officer. Such written proof may be furnished either by the Contractor or by a third party. Accreditation shall be in accordance with HHS policy available from the Contracting Officer upon request. The Contractor shall submit for acceptance by the Contracting Officer along with this ATO a final security plan, risk assessment, security test and evaluation, privacy threshold analysis or privacy impact assessment, and a disaster recovery plan/continuity of operations plan.

(f) Annual validation. On an annual basis, the Contractor shall verify in writing to the Contracting Officer that the IT Security Plan remains valid.

(g) Banners. The Contractor shall ensure that the official HHS banners are displayed on all HHS systems (both public and private) operated by the Contractor that contain Privacy Act or other sensitive information before allowing anyone access to the system. The Office of Information Technology will make official HHS banners available to the Contractor.

352.239-73 INFORMATION SYSTEM DESIGN AND DEVELOPMENT (FEB 2024) (DEVIATION)

(a) Design or development at non-HHS facilities. Information systems that are designed or developed for or on behalf of HHS at non-HHS facilities shall comply with all HHS directives developed in accordance with the Federal Information Security Modernization Act of 2014, Health Insurance Portability and Accountability Act (HIPAA) regulations, National Institute of Standards and Technology (NIST), and related HHS security and privacy control requirements for Federal information systems. This includes standards for the protection of electronic protected health information (PHI), outlined in 45 CFR Part 164, Subpart C, information and system security categorization level designations in accordance with Federal Information Processing Standards (FIPS) 199 and FIPS 200 with implementation of all baseline security controls commensurate with the FIPS 199 system security categorization and the Trusted Internet Connections Reference Architecture.

(b) Privacy Impact Assessment. During the development cycle a Privacy Impact Assessment must be completed by the contractor, provided to the Contracting Officer Representative, and approved by the appropriate HHS and Operating Division security and privacy officials; government, contractor, or independent third party.

(c) Security of procured or developed systems and technologies. The Contractor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as "Systems"), throughout the life of the contract and any extension, warranty, or maintenance periods. This includes, but is not limited to, workarounds, patches, hotfixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the Contractor anywhere in the Systems, including Operating Systems and firmware. The Contractor shall ensure that security fixes shall not negatively impact the Systems.

(d) Subcontract flow down requirements. The Contractor shall incorporate and flow

down the substance of this clause to all subcontracts where services to perform information system design and development are required.

(End of clause)

352.239-74 INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE (FEB 2024) (DEVIATION) (a) Definitions. As used in this clause—
Assessment and Authorization (A&A) means the process used to ensure information systems including Major Applications and General Support Systems have effective security safeguards which have been implemented, planned for, and documented in an Information Technology Security Plan. The A&A process per applicable HHS policies and procedures is the mechanism by which HHS provides an Authorization to Operate (ATO), the official management decision given by the HHS to authorize operation of an information system. Information system security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements. (b) Hosting, operation, maintenance, or use at non-HHS facilities. For information systems that are hosted, operated, maintained, or used on behalf of HHS at non-HHS facilities, Contractors/subcontractors are fully responsible and accountable for ensuring compliance with all applicable Health Insurance Portability and Accountability (HIPAA) Act of 1996 (HIPAA) regulations, the Privacy Act and other required HHS confidentiality statutes included in HHS mandatory yearly training and privacy policy, Federal Information Security Modernization Act (FISMA), National Institutes of Standards and Technology (NIST), Federal Information Processing Standards (FIPS), and HHS security and privacy policy. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The Contractor's security and privacy control procedures must be equivalent to or exceed those procedures used to secure HHS systems. A Privacy Impact Assessment (PIA) (if the system includes Personally Identifiable Information (PII)) or a Privacy Threshold Analysis (to determine if the system includes PII) must also be provided to the Contracting Officer Representative (COR) and approved by HHS Senior Agency Official for Privacy (SAOP) or designee prior to ATO. All external Internet connections to HHS network involving HHS information must be in accordance with the Trusted Internet Connections (TIC) Reference Architecture and reviewed and approved by HHS prior to implementation. For Cloud Services hosting, the Contractor shall also ensure compliance with the Federal Risk and Authorization Management Program (FedRAMP). (c) Collecting, processing, transmitting, and storing of PII. Adequate security and privacy controls for collecting, processing, transmitting, and storing of PII, as determined by the HHS SAOP or designee, must be in place, tested, and approved by HHS prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of HHS. These security and privacy controls are to be assessed and stated within the PIA, Information System Security Plan, Information System Privacy Plan, Security Control Assessment Report, and/or Privacy Control Assessment Report, as agreed upon by the Contractor, COR, and the Operating Division Senior Official for Privacy. If these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII. (d) Annual FISMA security controls assessment. The Contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this

assessment must be provided to the Contracting Officer for entry into HHS Plan of Action & Milestones (POA&M) management process. The Contractor/subcontractor must use HHS POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes specified by the HHS in the performance work statement or statement of work, or in the approved remediation plan through the HHS POA&M process. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by HHS officials, including the HHS Office of Inspector General. The physical security aspects associated with Contractor/subcontractor activities must also be subject to such assessments. The results of an annual review or a major change in the cybersecurity posture at any time may indicate the need for reassessment and reauthorization of the system. If major changes to the system occur that may affect the privacy or security of the data or the system, the A&A of the system may need to be reviewed, retested and re-authorized per HHS Rules of Behavior for the Use of HHS Information and IT Resources Policy. Major changes introducing new privacy risks require an updated and reapproved PIA. (e) Annual self-assessment. The Contractor/subcontractor must conduct an annual self-assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COR. HHS reserves the right to conduct such an assessment using government personnel or another Contractor/subcontractor. The Contractor/subcontractor must take appropriate and timely action, as may be specifically addressed in the contract, to correct or mitigate any weaknesses discovered during such testing, at no additional cost to the Government to correct Contractor/subcontractor systems and outsourced services. (f) Prohibition of installation and use of personally-owned or Contractor-owned equipment or software on HHS networks. HHS prohibits the installation and use of personally-owned or Contractor/subcontractor-owned equipment or software on HHS networks. If non-HHS owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, performance work statement, statement of work, or contract. All of the security controls required for government furnished equipment must also be utilized in approved other equipment (OE) at the Contractor's expense. All remote systems must be equipped with, and use, an HHS approved antivirus software and a personal (host-based or enclave based) firewall that is configured with an HHS-approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-HHS owned OE. (g) Disposal or return of electronic storage media on non-HHS leased or non-HHS owned IT equipment. All electronic storage media used on non-HHS leased or non-HHS owned IT equipment that is used to store, process, or access HHS information must be handled in adherence with disposition instructions upon— (1) Completion or termination of the contract; or (2) Disposal or return of the IT equipment by the Contractor/subcontractor or any person acting on behalf of the Contractor/subcontractor, whichever is earlier. Media (e.g., hard drives, optical disks, CDs, back-up tapes) used by the Contractors/ subcontractors that contain HHS information must be returned to the HHS for sanitization or destruction or the Contractor/subcontractor must self-certify that the media has been disposed of per disposition instructions. This must be completed within 30 days of termination of the contract. (h) Bio-Medical devices and other equipment or systems. Bio-Medical devices and other equipment or systems containing media (e.g., hard drives, optical disks) with HHS sensitive information will not be returned to the Contractor at the end of lease, for trade-in, or other purposes. For purposes of these devices and protection of HHS sensitive information the devices may be provided back to the Contractor under one of

three scenarios— (1) The Contractor must accept the system without the drive; (2) A spare drive must be installed in place of the original drive at time of turnin if HHS initial medical device purchase included a spare drive; or (3) The Contractor may request reimbursement for the drive at a reasonable open market replacement cost to be separately negotiated by the Contracting Officer and the Contractor at time of contract closeout. (End of clause)

352.239-75 SECURITY CONTROLS COMPLIANCE TESTING (FEB 2024) (DEVIATION)

On a periodic basis, HHS, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy controls implemented by the Contractor under the clauses contained within the contract. With 10 working-days' notice, at the request of the government, the Contractor must fully cooperate and assist in a government-sponsored security controls assessment at each location wherein HHS information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of HHS, including those initiated by the Office of Inspector General. The government may conduct a security control assessment on shorter notice, to include unannounced assessments, as determined by HHS in the event of an incident or a breach, or at any other time.

(End of clause)

352.239-76 SECURITY REQUIREMENTS FOR GOVERNMENT-OWNED CONTRACTOR-OPERATED AND CONTRACTOR-OWNED CONTRACTOR-OPERATED RESOURCES (FEB 2024) (DEVIATION)

(a) *Federal policies.* The Contractor shall comply with applicable federal laws, regulations, and HHS policies that include, but are not limited to—

- (1) HHS Policy for Information Security and Privacy Protection (IS2P);
- (2) Federal Information Security Modernization Act (FISMA) of 2014, (44 U.S.C. 101);
- (3) National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53, latest revision, Security and Privacy Controls for Information Systems and Organizations;
- (4) Office of Management and Budget (OMB) Circular A-130, Managing Information as a Strategic Resource; and
- (5) Any other applicable federal laws, regulations, NIST guidance, and local HHS policies.

(b) *Assessment and Authorization (A&A).* A valid authority to operate (ATO) certifies that the Contractor's information system meets the contract's requirements to protect the agency data. If the system under this contract does not have a valid ATO, the Contractor shall work with the agency and supply the deliverables required to complete the ATO no later than thirty (30) days prior to the Operational Readiness Review (ORR), or as otherwise directed by the Contracting Officer (CO) and/or Contracting Officer's Representative (COR).

The Contractor must conduct the A&A requirements in accordance with the **HHS Information Security and Privacy Policy (IS2P)**, **HRSA Information Security Policy**, National Institute of Standards and Technology (NIST) Special Publication (SP) 800-37, Guide for Applying the Risk Management Framework to Information Systems: A Security Life Cycle Approach (latest revision), NIST SP 800-53B, Control Baselines for Information Systems and Organizations, and NIST SP 800-53A (latest revision).

HHS acceptance of the ATO does not alleviate the Contractor's responsibility to ensure the system security and privacy controls are implemented and operating effectively.

(1) *A&A package deliverables.* The Contractor shall provide a complete Assessment and Authorization (A&A) package **no later than thirty (30) days prior to the Operational Readiness Review (ORR)** to the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR). All A&A deliverables shall be submitted electronically in formats approved by the Government and in accordance with HHS and HRSA security policy and guidance. The following A&A deliverables are required to complete the A&A package—

(i) *In addition to the HHS baseline deliverables, the Contractor shall provide, as applicable, the following documentation:*

Privacy Threshold Analysis (PTA);

Privacy Impact Assessment (PIA), if required;

System of Records Notice (SORN), if applicable;

Risk Assessment Report;

Business Impact Analysis (BIA);

Contingency Plan (CP) and Contingency Plan Test Plan and Test Report;

Incident Response Plan, if applicable;

Configuration Management Plan;

Security Assessment Plan (SAP);

Security Assessment Report (SAR);

Plan of Action and Milestones (POA&M); and

Continuous Monitoring Plan, if applicable.

- (ii) **A System Security Plan (SSP)** is due **no later than thirty (30) days prior to the Operational Readiness Review (ORR)**. The SSP shall comply with National Institute of Standards and Technology (NIST) Special Publication (SP) 800-18, *Guide for Developing Security Plans for Federal Information Systems*; Federal Information Processing Standard (FIPS) 200, *Minimum Security Requirements for Federal Information and Information Systems*; and NIST SP 800-53, *Security and Privacy Controls for Information Systems and Organizations*, applicable baseline requirements, and other applicable NIST guidance, as well as HHS and HRSA policies and guidance.

The SSP must be consistent with and detail the approach to information technology security contained in the Contractor's bid or proposal that resulted in the award of this contract. The SSP must provide an overview of the system environment and security requirements to protect the information system (see HHSAR 302.101, Definitions), describe all applicable security and privacy controls in place or planned to meet those requirements, and provide a structured process for planning adequate, cost-effective security protection for the system.

The Contractor shall review and update the SSP **at least annually**, and upon request, provide a copy of the updated SSP to the COR.

- (iii) **A Security Assessment Plan/Report (SAP/SAR)** is due **no later than thirty (30) days prior to the Operational Readiness Review (ORR)** to the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR). The security assessment must be conducted by an **independent assessor**, and be consistent with National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53A, *Assessing Security and Privacy Controls in Information Systems and Organizations*; NIST SP 800-30, *Guide for Conducting Risk Assessments*; and applicable HHS and HRSA policies.

The assessor shall document the assessment results in a **Security Assessment Report (SAR)**. Thereafter, the Contractor, in coordination with the COR, shall conduct, or as directed, **an annual assessment of the security and privacy controls**, and update the SAR **at least annually**. A copy of the updated SAR shall be provided to the COR upon request.

- (iv) All systems shall have a completed privacy threshold analysis (PTA). If the PTA results determines the system contains personally identifiable information, a privacy impact assessment, approved by the HHS SAOP, is required.
- (v) System Privacy Plan and Privacy Control Assessment. As required in [OMB Circular A-130](#), a System Privacy Plan and Privacy Control Assessment shall be included in A&A. The plan and assessment may be included in the Security System Plan, or a separate report in the A&A, as determined by the COR.
- (vi) **An Independent Assessment** is due **no later than thirty (30) days prior to the Operational Readiness Review (ORR)** to the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR). The Contractor shall have an **independent third-party assessor** validate the security and privacy controls in place for the system(s) commensurate with the risk levels defined in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53B, *Control Baselines for Information Systems and Organizations*.

The independent third-party assessor shall review and analyze the security authorization package and report on **technical, operational, and management control deficiencies** in accordance with NIST SP 800-53, *Security and Privacy Controls for Information Systems and Organizations*.

The Contractor shall **remediate all High-risk deficiencies prior to submission of the authorization package to the Government for acceptance** and shall document all remaining Moderate and Low-risk deficiencies in a system **Plan of Action and Milestones (POA&M)** in accordance with HHS and HRSA policy.

(vii) The **Plan of Action and Milestones (POA&M)** is due as follows—

(A) A POA&M shall be submitted **within ten (10) business days** from the date the weaknesses are formally identified and documented. The POA&M shall be provided electronically in a format approved by the Government and in accordance with HHS and HRSA policy.

(B) **Critical-risk weaknesses** must be mitigated **within fifteen (15) days** from the date the weaknesses are formally identified and documented.

(C) **High-risk weaknesses** must be mitigated **within thirty (30) days** from the date the weaknesses are formally identified and documented.

(D) **Moderate-risk weaknesses** must be mitigated **within ninety (90) days** from the date the weaknesses are formally identified and documented.

(E) **Low-risk weaknesses** must be mitigated **within three hundred sixty-five (365) days** from the date the weaknesses are formally identified and documented.

(2) HHS will determine the risk rating of all vulnerabilities. Identified risks stemming from deficiencies related to security control baseline implementation, assessment, continuous monitoring, vulnerability scanning, flaws and security defects in a system (that require creation of a patch for remediation), and other security reviews and sources, as documented in the Security Assessment Report (SAR), shall be documented and tracked by the Contractor for mitigation in the **Plan of Action and Milestones (POA&M)** consistent with the **HHS Standard for Plan of Action and Milestones** policies.

Depending on the severity of the risks, HHS may require designated POA&M weaknesses to be remediated **prior to issuance of an Authority to Operate (ATO)**. Thereafter, the Contractor shall continue to remediate weaknesses throughout the period of performance of the contract.

The POA&M document shall be **updated and submitted to the Government on a monthly basis**, or more frequently if directed by the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR), and provided electronically in a format approved by the Government.

(3) A Contingency Plan and Contingency Plan Test are due **no later than thirty (30) days prior to the Operational Readiness Review (ORR)** to the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR). Deliverables shall be submitted electronically in a format approved by the Government.. The Contingency Plan shall be developed in accordance with NIST SP 800-34, *Contingency Planning Guide for Federal Information Systems*, and be consistent with HHS policies. Upon final acceptance by the System Owner, the Contractor, in coordination with the COR and System Owner, shall test the Contingency Plan and prepare a Contingency Plan Test Report that includes the test results, lessons learned, and any remaining action items to be addressed. The

Contractor shall update and test the Contingency Plan at least *annually*.

- (4) An E-Authentication Questionnaire is required. The Contractor shall collaborate with at the COR's direction to ensure that the E-Authentication Guidance requirements are implemented in accordance with OMB 04-04 and NIST SP 800-63 series, latest versions. Based on the level of assurance determined by the E-Authentication, the Contractor shall ensure appropriate authentication to the system, including remote authentication, is in-place in accordance with the assurance level determined by the E-Authentication (when required), in accordance with HHS *Guidance for Selection of e-Authentication Assurance Levels* and any other applicable HHS policies.
- (5) *Information security continuous monitoring*. Upon the government issuance of an ATO, the Contractor-owned/operated systems that input, store, process, output, and/or transmit government information shall meet or exceed the information security continuous monitoring (ISCM) requirements in accordance with FISMA and NIST SP 800-137, *Information Security Continuous Monitoring (ISCM) for Federal Information Systems and Organizations*, HHS ISCM Strategy, and HHS IS2P.
- (6) *Annual assessment/penetration (pen) test*. The Contractor shall assess the system security and privacy controls (or ensure an assessment of the controls is conducted) **at least annually** to determine whether the implemented security and privacy controls are operating as intended and producing the desired results. **For systems categorized as High or designated as High Value Assets (HVAs), this shall include penetration testing conducted by the Government or an independent third-party assessor approved by the Government.** In addition, the Contractor shall review all relevant Assessment and Authorization (A&A) documentation, including but not limited to the **System Security Plan (SSP), Plan of Action and Milestones (POA&M), Contingency Plan, and Contingency Plan Test Report**, and shall provide updated documentation **by the due date specified by the Contracting Officer's Representative (COR).**
- (7) *Asset management*. Using any available Security Content Automation Protocol (SCAP)-compliant automated tools for active/passive scans, the Contractor shall provide an inventory of all information technology (IT) assets for hardware and software (computers, servers, routers, databases, operating systems, etc.) that are processing HHS-owned information and/or data. It is anticipated that this inventory information will be required to be produced at least **monthly**, and **upon request** by the Government. IT asset inventory information shall include—
 - (i) IP address;
 - (ii) Machine name;
 - (iii) Operating system level;
 - (iv) Security patch level; and
 - (v) SCAP-compliant format information. The Contractor shall maintain a capability to provide an inventory of 100% of its IT assets using SCAP-compliant automated tools in accordance with the *HHS Policy for Information Technology Asset Management (ITAM)* and any other applicable HHS policy.
- (8) *Configuration management*. The Contractor shall use available SCAP-compliant automated tools as per NIST IR 7511 and *HHS Minimum Security*

Configurations Standards Guidance to scan all IT assets, including but not limited to computers, servers, routers, databases, operating systems, application, etc., that store and process government information. The Contractor shall provide scan reports to the COR upon request. The Contractor shall maintain a capability to provide security configuration compliance information for 100% of its IT assets using SCAP-compliant automated tools.

(9) *Vulnerability management.* The Contractor shall actively manage system vulnerabilities using automated tools and technologies where practicable and in accordance with *HHS Policy for Vulnerability Management*. Automated tools must be compliant with NIST-specified SCAP standards for vulnerability identification and management. The contractor shall maintain a capability to provide security vulnerability scanning information for 100% of IT assets using SCAP-compliant automated tools and report to the agency at least **weekly**, and **upon request**, in a format approved by the Government.

(10) *Patching and vulnerability remediation.* The Contractor shall install vendor-released security patches and remediate critical and high vulnerabilities in systems processing government information in an expedited manner, within vendor and agency specified timeframes.

(11) *Secure coding.* The Contractor shall follow the *HHS Policy for Software Development Secure Coding Practices* and secure coding best practice requirements, as directed by United States Computer Emergency Readiness Team specified standards, the Software Engineering Institute (SEI) CERT and the Open Web Application Security Project, that will limit system software vulnerability exploits.

(12) *Boundary protection.* The Contractor shall ensure that government information, other than unrestricted information, being transmitted from federal government entities to external entities is routed through a Trusted Internet Connection.

(13) *Government access for security assessment.*

(i) In addition to the Inspection Clause in the contract, the Contractor shall afford the Government access to the Contractor's facilities, installations, operations, documentation, information systems, and personnel used in performance of this contract to the extent required to carry out a program of security assessment (to include vulnerability testing), investigation, and audit to safeguard against threats and hazards to the confidentiality, integrity, and availability of federal data or to the protection of information systems operated on behalf of HHS. This access includes, but is not limited to—

(1) At any tier handling or accessing information, consent to and allow the Government, or an independent third party working at the Government's direction, without notice at any time during a weekday during regular business hours contractor local time, access to Contractor and subcontractor installations, facilities, infrastructure, data centers, equipment (including but not limited to all servers, computing devices, and portable media), operations, documentation (whether in electronic, paper, or other forms), databases, and personnel which are used in performance of the contract. For the purposes of this paragraph only,

Government includes, but is not limited to, Contracting Officer, COR, the U.S. Department of Justice, U.S. Government Accountability Office, and the HHS Office of the Inspector General (OIG). The purpose of access is to facilitate performance inspections and reviews, security and compliance audits, and law enforcement investigations. For security audits, the audit may include, but not be limited to, such items as buffer overflows, open ports, unnecessary services, lack of user input filtering, cross site scripting vulnerabilities, Structured Query Language injection vulnerabilities, and any other known vulnerabilities.

(2) At any tier handling or accessing protected information, fully cooperate with all audits, inspections, investigations, forensic analysis, or other reviews or requirements needed to carry out requirements presented in applicable law or policy. Beyond providing access, full cooperation also includes, but is not limited to, disclosure to investigators of information sufficient to identify the nature and extent of any criminal or fraudulent activity and the individuals responsible for that activity. It includes timely and complete production of requested data, metadata, information, and records relevant to any inspection, audit, investigation, or review, and making employees of the contractor available for interview by inspectors, auditors, and investigators upon request. Full cooperation also includes allowing the Government to make reproductions or copies of information and equipment, including, if necessary, collecting a machine or system image capture.

(ii) The Contractor shall segregate Government protected information and metadata on the handling of Government protected information from other information. Commingling of information is prohibited. Government inspectors, auditors, and investigators will not be precluded from having access to the sought information if sought information is commingled with other information.

(iii) The Contractor shall cooperate with inspections, audits, investigations, and reviews.

(c) *End of Life compliance.* The Contractor shall use Commercial off the Shelf (COTS) software or other software that is supported by the manufacturer. In addition, the COTS/other software need to be within one major version of the current version; deviation from this requirement will only be allowed via the HHS waiver process (approved by HHS CISO if it impacts enterprise-wide systems and services, or by the OPDIV CISO if it impacts only the OPDIV). The contractor must retire and/or upgrade all software/systems that have reached end-of-life in accordance with *HHS End of Life Operating Systems, Software and Application Policy*.

(d) *Desktops, laptops, and other computing devices required for use by the Contractor.* The Contractor shall ensure that all IT equipment (e.g., laptops, desktops, servers, routers, mobile devices, peripheral devices, etc.) used to process information on behalf of HHS are deployed and operated in accordance with approved security configurations and meet the following minimum requirements:

(1) Encrypt equipment and sensitive information stored and/or processed by such equipment in accordance with HHS encryption standard and current FIPS 140 validation certificate from the NIST Cryptographic Module Validation Program.

(2) Configure laptops and desktops in accordance with the latest applicable United States Government Configuration Baseline, HRSA Secure Configuration Baselines and HHS Minimum

Security Configuration Standards;

(3) Maintain the latest operating system patch release and anti-virus software definitions at **least monthly for operating system security patches and daily for anti-virus software definitions**, or more frequently if required by the Government;

(4) Validate the configuration settings after hardware and software installation, operation, maintenance, update, and patching and ensure changes in hardware and software do not alter the approved configuration settings; and

(5) Automate configuration settings and configuration management in accordance with HHS security policies, including but not limited to:

(i) Configuring its systems to allow for periodic HHS vulnerability and security configuration assessment scanning; and

(ii) Using SCAP-validated tools with capabilities to scan its systems at least on a monthly basis and report the results of these scans to the Contracting Officer and/or COR, Project Officer, and any other point of contact designated by the Contracting Officer or COR.

(e) *Rights to data.* Contractors shall specify any data rights asserted and mark such deliverables accordingly in accordance with applicable data rights clauses set forth in the contract.

(f) *Information and Communications Technology (ICT) Cybersecurity Supply Chain Risk Management (C-SCRM) requirements.* The Contractor shall secure their ICT supply chain in compliance with *HHS Policy for Cyber Supply Chain Risk Management* and Public Law 115-232, section 889. At a minimum, the Contractor shall—

- (1) Develop rules for suppliers' development methods, techniques, or practices;
- (2) Use secondary market components;
- (3) Prohibit counterfeit products;
- (4) Dispose and/or retain elements such as components, data, or intellectual property securely;
- (5) Ensure adequate supply of components;
- (6) Require external providers handling federal information or operating systems on behalf of the federal government to meet the same security and privacy requirements as federal agencies;
- (7) Require external providers to express security and privacy requirements (including the controls for systems processing, storing, or transmitting federal information) in contracts or other formal agreements;
- (8) Establish Service Level Agreements (SLAs), patching vehicles, and disclosure requirements in the case of an incident or new vulnerability being discovered; and

(9) Ensure that the supplier applies same contractual requirements to any sub-contractors/suppliers that they involve in the provision of the product or service to the customer; and

(10) Prohibit the use of covered telecommunications and video surveillance equipment or services.

(g) *Subcontract flow down.* The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts and third-party agreements, at any tier, of any amount and in which subcontractor employees and third-party servicers/employees, will perform functions or provide products under the scope of this contract, and have access to HHS information (including HHS sensitive information, *i.e.*, protected health information), information systems, information technology (IT) or providing and accessing information technology-related contract services, support services, and related resources (see HHSAR 302.101, Definitions).

(End of clause)

352.239-77 CLOUD COMPUTING SERVICES (FEB 2024) (DEVIATION)

(a) *Responsibilities.* This clause is applicable to all or any part of the contract that includes cloud computing services. The Contractor shall be responsible for the following privacy and security requirements on this contract—

(1) *Federal Risk and Authorization Management Program (FedRAMP) compliant authorization to operate.* Compliance with FedRAMP Assessment and Authorization (A&A) requirements and ensure the information system/service (see HHSAR 302.101, Definitions) under this contract has an approved FedRAMP compliant authority to operate (ATO) in accordance with Federal Information Processing Standard (FIPS) Publication 199 defined security categorization. If a FedRAMP compliant ATO has not been granted, the Contractor must submit a plan to obtain a FedRAMP compliant ATO **plan and required supporting documentation within thirty (30) days after contract award**, in a format approved by the Government, and in accordance with FedRAMP, HHS, and HRSA policies. The plan shall describe the approach, milestones, and estimated timelines for obtaining a FedRAMP-compliant ATO.

(i) Implement applicable FedRAMP baseline controls commensurate with the agency-defined security categorization and the applicable FedRAMP security control baseline available at [fedramp.gov](https://www.fedramp.gov)). The *HHS Policy for Information Security and Privacy Protection (IS2P)* and *HHS Cloud Computing and Federal Risk and Authorization Management Program (FedRAMP) Guidance* further define the baseline policies as well as roles and responsibilities. The Contractor shall implement additional controls identified by the agency in this contract.

(ii) A security control assessment must be conducted by a FedRAMP third-party assessment organization (3PAO) for the initial ATO and annually thereafter, or when there is a significant change to the system's security posture in accordance with the FedRAMP Continuous Monitoring Plan.

(2) *Data jurisdiction.* The Contractor shall store all information within the approved security authorization boundary, including **data at rest and data backups, within the Continental United States (CONUS)**. All data storage, processing, and backup locations shall be limited to **FedRAMP-**

authorized cloud service provider facilities located within CONUS, unless otherwise expressly authorized in writing by the Contracting Officer (CO) and/or Contracting Officer's Representative (COR).

(3) *Service Level Agreements (SLAs)*. When applicable, the Contractor shall understand the terms of the service agreements that define the legal relationships between cloud customers and the cloud service provider and work with the Contracting Officer's Representative (COR) to develop and maintain an SLA, as provided in the contract.

(4) *Interconnection Agreements/Memorandum of Agreements*. When applicable and identified in this contract, the Contractor shall establish and maintain interconnection agreements and or memorandum of agreements/understanding in accordance with HHS policies.

(b) *Protection of information in a cloud environment.*

(1) If Contractor personnel shall remove any information from the primary work area, they shall protect it to the same extent they would the proprietary data and/or company trade secrets and in accordance with HHS policies, available at <https://www.hhs.gov/web/governance/digital-strategy/it-policy-archive/index.html>.

(2) HHS will retain unrestricted rights to federal data handled under this contract. Specifically, HHS retains ownership of any user created/loaded data and applications collected, maintained, used, or operated on behalf of HHS and hosted on Contractor's infrastructure, as well as maintains the right to request full copies of these at any time. If requested, data shall be made available to HHS, at no additional cost, within one (1) business day from the date of the request, or within the timeframe otherwise specified.

(3) The Contractor shall ensure that the facilities that house the network infrastructure are physically and logically secure in accordance with FedRAMP requirements and HHS policies.

(4) The Contractor shall comply with NARA-approved records schedule(s) and protection requirements for federal agency electronic records in accordance with 36 CFR 1236.20 and 1236.22 (ref. a), including but not limited to —

(i) Maintenance of links between records and metadata; and

(ii) Categorization of records to manage retention and disposal, either through transfer of permanent records to NARA or deletion of temporary records in accordance with NARA-approved retention schedules.

(5) The disposition of all HHS data shall be at the written direction of the COR. This may include documents returned to HHS control, destroyed, or held as specified until otherwise directed. Items returned to the Government shall be hand carried or sent by certified mail to the COR.

(i) If the system involves the design, development, or operation of a system of records on individuals the Contractor shall comply with the **Privacy Act of 1974 (5 U.S.C. § 552a)** and all applicable HHS and HRSA privacy policies.

The Contractor shall—

- Use Privacy Act records only for the purposes authorized under this contract;

- Safeguard Privacy Act records in accordance with HHS and HRSA security and privacy requirements to prevent unauthorized disclosure or misuse;
- Assist the Government, as required, in the development, update, and maintenance of any applicable **System of Records Notice (SORN)**;
- Support completion of a **Privacy Threshold Analysis (PTA)** and **Privacy Impact Assessment (PIA)**, when required; and
- Ensure that any subcontractors handling Privacy Act records comply with the same Privacy Act requirements.

The disposition of Privacy Act records upon completion of contract performance shall be in accordance with HHS/HRSA records retention and disposition instructions provided by the Government.

Assessment and Authorization (A&A) process.

(6) The Contractor shall comply with HHS and FedRAMP requirements as mandated by federal laws, regulations, privacy policies, and HHS policies, including making available any documentation, physical access, and logical access needed to support the A&A requirement. The level of effort for the A&A is based on the system's FIPS 199 security categorization and HHS security policies.

All required A&A documentation and certifications shall be completed and submitted prior to system deployment or service implementation, and no later than thirty (30) days prior to the Operational Readiness Review (ORR), unless otherwise directed by the Contracting Officer (CO) and/or Contracting Officer's Representative (COR).

- (i) In addition to the FedRAMP compliant ATO, the Contractor shall complete and maintain an agency A&A package to obtain agency ATO prior to system deployment or service implementation. The Contractor shall submit all required agency A&A documentation **no later than thirty (30) days prior to the Operational Readiness Review (ORR)**, or as otherwise directed by the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR), and in a format approved by the Government.

The agency ATO must be approved by the **HHS Authorizing Official (AO)** prior to implementation of the system and/or service being acquired.

(ii) Cloud Service Provider (CSP) systems categorized as FIPS 199 High, Moderate or Low are recommended but not required to leverage a FedRAMP accredited Third Party Assessment Organization (3PAO). A CSP's agency partner may choose to use their own Independent Verification and Validation (IV&V) organization or 3PAO to assess the system. If an agency chooses to use their own IV&V team or an unaccredited 3PAO, they must submit an attestation regarding the team's independence to the agency and the FedRAMP PMO, and the IV&V / 3PAO team must use FedRAMP templates for the assessment and follow all FedRAMP requirements.

- (iii) For all cloud services, the Assessment and Authorization (A&A) package must contain, at a minimum, the following documentation, as applicable:

- E-Authentication (E-Auth) Risk Assessment Questionnaire;
- Privacy Threshold Analysis (PTA);
- Privacy Impact Assessment (PIA), if applicable;
- Risk Assessment Report;
- IT System Business Impact Analysis (BIA);
- IT System Contingency Plan (CP);

- IT System Contingency Plan Test Results;
- System of Records Notice (SORN), if applicable;
- Interconnection Agreements, Service Level Agreements (SLAs), and/or Memoranda of Agreement or Understanding (MOA/MOU), if applicable;
- Configuration Management Plan;
- Security Configurations and Configuration Baseline documentation;
- FedRAMP Test Procedures and Results;
- Security Assessment Plan (SAP);
- Security Assessment Report (SAR);
- System Security Plan (SSP);
- Plan of Action and Milestones (POA&M);
- Continuous Monitoring Plan;
- Incident Response Plan;
- FedRAMP Control Tailoring Workbook;
- Control Implementation Summary Table;
- Results of Penetration Testing; and
- Software Code Review documentation, when applicable.

The Contractor shall maintain the A&A package in accordance with HHS, HRSA, and FedRAMP requirements and provide updated documentation upon request by the Government.

- (1) Following the initial ATO, the Contractor shall review and maintain the ATO in accordance with HHS policies. The following templates and timelines are applicable.

(2) HHS reserves the right to perform penetration testing on all systems operated on behalf of the agency. If the Contracting Officer exercises this right, the Contractor shall allow HHS employees (and/or designated third parties) to conduct Security Assessment activities to include control reviews in accordance with HHS requirements. Review activities include, but are not limited to—

- (i) Scanning operating systems, web applications, wireless scanning;
- (ii) Network device scanning to include routers, switches, and firewall, and IDS/IPS; and,
- (iii) Databases and other applicable systems, including general support structure, that support the processing, transportation, storage, or security of Government information for vulnerabilities.

(3) The Contractor shall identify any gaps between required FedRAMP Security Control Baseline/Continuous Monitoring controls and the Contractor's implementation status as documented in the Security Assessment Report and related Continuous Monitoring artifacts. In addition, the Contractor shall document and track all gaps for mitigation in a Plan of Action and Milestones (POA&M) document. Depending on the severity of the risks, HHS may require remediation at the Contractor's expense before HHS issues an ATO.

(4) The Contractor shall mitigate security risks for which they are responsible, including those identified during A&A and continuous monitoring activities. All vulnerabilities and findings shall be remediated in accordance with timelines specified in the HHS POA&M Standard from discovery—

- (i) Critical vulnerabilities no later than fifteen (15) days;
- (ii) High within thirty (30) days;
- (iii) Medium within ninety (90) days; and
- (iv) Low vulnerabilities no later than three hundred and sixty (360) days, unless otherwise specified.

(v) In the event a vulnerability or other risk finding cannot be mitigated within the prescribed timelines above, they must be added to the designated POA&M and mitigated within a **revised, Government-approved remediation timeline**. The Contractor shall propose revised mitigation timelines for Government review and approval, and shall continue remediation activities until closure. **All revised timelines must be consistent with the HHS Standard for Plan of Action and Milestones and FedRAMP continuous monitoring requirements.** HHS will determine the risk rating of vulnerabilities using FedRAMP baselines.

(5) Revocation of a cloud service. HHS has the right to take action in response to the CSP's lack of compliance and/or increased level of risk. In the event the CSP fails to meet HHS and FedRAMP security and privacy requirements and/or there is an incident involving sensitive information (see HHSAR 302.101, Definitions), HHS may suspend or revoke an existing agency ATO (either in part or in whole) and/or cease operations. If an ATO is suspended or revoked in accordance with this provision, the Contracting Officer may direct the CSP to take additional security measures to secure sensitive information. These measures may include restricting access to sensitive information on the Contractor information system under this contract. Restricting access may include disconnecting the

system processing, storing, or transmitting the sensitive information from the internet, other networks, or applying additional security controls.

(b) Reporting and continuous monitoring.

(1) Following the initial ATOs, the Contractor shall perform the minimum ongoing continuous monitoring activities, submit required deliverables by the specified due dates, and meet with the system/service owner and other relevant stakeholders to discuss the ongoing continuous monitoring activities, findings, and other relevant matters. The CSP will work with the agency to schedule ongoing continuous monitoring activities. The minimum ongoing continuous monitoring activities include—

- Monthly submission of operating system, database, web application, and network vulnerability scan results;
- Monthly updates to the Plan of Action and Milestones (POA&M);
- Monthly submission of any configuration changes to the system, system components, or cloud environment that may impact the HHS/HRSA security posture, subject to Government approval;
- Annual security control assessment and update of authorization package documentation, including the System Security Plan (SSP), Security Assessment Report (SAR), Contingency Plan, and other applicable A&A artifacts; and
- Periodic continuous monitoring meetings, at least quarterly, or more frequently as directed by the Contracting Officer (CO) and/or Contracting Officer's Representative (COR), to review security posture, risks, findings, and remediation status.

All continuous monitoring activities and deliverables shall be performed in accordance with **HHS, HRSA, and FedRAMP continuous monitoring requirements**.

(2) At a minimum, the Contractor shall provide the following artifacts/deliverables on a monthly basis:

(i) Operating system, database, Web application, and network vulnerability scan results;

(ii) Updated POA&Ms;

(iii) Any updated authorization package documentation as required by the annual attestation/assessment/review or as requested by the System Owner or AO, and;

(iv) Any configuration changes to the system and/or system components or CSP's cloud environment, that may impact HHS security posture. Changes to the configuration of the system, its components, or environment that may impact the security posture of the system under this contract shall be approved by the agency.

(c) Configuration baseline.

The Contractor shall certify that applications are fully functional and operate correctly as intended on systems using HHS Minimum Security Configuration Standards Guidance. The standard installation, operation, maintenance, updates, and/or patching of software must not alter the configuration settings from the approved HHS/HRSA configuration baseline, including but not limited to HRSA Secure Configuration Baselines and HHS Minimum Security Configuration

Standards, unless otherwise approved in writing by the Contracting Officer (CO) and/or the Contracting Officer's Representative (COR).

(1) The Contractor shall use NIST Security Content Automation Protocol (SCAP) validated tools with configuration baseline scanner capability to certify their products operate correctly with HHS and NIST defined configurations and do not alter these settings.

(d) *Report of known or suspected incident or breach.* The Contractor, subcontractor, third-party affiliate or business associate, and its employees shall notify HHS immediately via the Contracting Officer and the COR or within one (1) hour of an known or suspected incident or breach. The initial notification may first be made verbally but must be followed up in writing within one (1) hour. Report all actual or suspected incident and breach information to the Contracting Officer and the COR as identified in the contract or as directed in the contract, within one hour of discovery or suspicion.

(1) Such issues shall be remediated as quickly as is practical, but in no event longer than **thirty (30) days** from identification of the issue. The Contractor shall notify the Contracting Officer in writing upon completion of remediation.

(2) When the security fixes involve installing third-party patches (e.g., Microsoft operating system patches or Adobe Acrobat), the Contractor shall provide written notice to HHS that the patch has been validated as not adversely affecting the system **within ten (10) working days**. When the Contractor is responsible for operations or maintenance of the system(s), the Contractor shall apply the security fixes **within fifteen (15) days**, or sooner if directed by the Government.

(3) All other vulnerabilities shall be remediated in a timely manner based on risk, in accordance with the timelines specified in the HHS Policy for Vulnerability Management, and the HHS Standard for Plan of Action and Milestones (POAM) Management and Reporting. Contractors shall notify the Contracting Officer, and COR within 2 business days after remediation of the identified vulnerability. Exceptions to this paragraph (e.g., for the convenience of HHS) must be requested by the Contractor through the COR and shall only be granted with approval of the Contracting Officer and the Office of the Chief Information Officer (OCIO). These exceptions will be tracked by the Contractor in concert with the Government in accordance with HHS Policy for IT Procurements— Security and Privacy Language.

(e) *Incident and breach investigation.* (1) The Contractor/ subcontractor shall immediately notify the Contracting Officer and COR for the contract of any known or suspected incident or breach (see definitions, paragraph (a)), or any other unauthorized disclosure of sensitive information, including that contained in system(s) to which the Contractor/subcontractor has access.

(2) To the extent known by the Contractor/subcontractor, the Contractor/ subcontractor's notice to HHS shall identify the information involved, an estimate of the number of potentially impacted individuals, the circumstances surrounding the incident (including to whom, how, when, and where the HHS information or assets were placed at risk or compromised), and any other information that the Contractor/subcontractor considers relevant.

(3) With respect to unsecured protected health information, the business associate is deemed to have discovered an incident as defined above when the business associate either knew, or by exercising reasonable diligence should have been known to an employee of the business associate. Upon discovery, the business associate must notify HHS of the incident immediately within one hour of discovery or suspicion as agreed to in the business associate agreement.

(4) In instances of theft or break-in or other criminal activity, the Contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction. The Contractor, its employees, and its subcontractors and their employees shall cooperate with HHS and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/subcontractor shall cooperate with HHS in any civil litigation to recover HHS information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

(f) Incident and breach notification requirements. (1) The Contractor/subcontractor shall provide notice to HHS of a privacy or incident as set forth in the incident and breach investigation section of this clause. The Contractor shall fully cooperate with HHS or third-party entity performing an independent risk analysis on behalf of HHS. Failure to cooperate may be deemed a material incident or breach and grounds for contract termination.

(2) The Contractor/subcontractor shall fully cooperate with the HHS Computer Security Incident Response Center (CSIRC), HHS Breach Response Team, Operating Divisions (OPDIVs), Staff Divisions (STAFFDIVs), other stakeholders or any Government agency conducting an analysis regarding any notice of an incident or breach, potential incident or breach, or incident which may require the Contractor to provide information to the Government or third-party performing a risk analysis for HHS, and shall address all relevant information concerning the incident or breach, including the following:

(i) Nature of the event (loss, theft, unauthorized access).

(ii) Description of the event, including:

(A) Date of occurrence.

(B) Date of incident or breach detection.

(C) Data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code.

(D) Number of individuals affected or potentially affected.

(E) Names of individuals or groups affected or potentially affected.

(F) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text.

(G) Amount of time the data has been out of HHS control.

(H) The likelihood that the sensitive information will or has been compromised (made accessible to and usable by unauthorized persons).

(I) Known misuses of data containing sensitive information, if any.

(J) Assessment of the potential harm to the affected individuals.

(K) Incident or breach analysis as outlined in the HHS Breach Response Policy and Plan, as appropriate.

(L) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive information that may have been compromised.

(M) Steps taken in response to mitigate or prevent a repetition of the incident.

(g) *Media transport.*

- (1) The Contractor and its employees must be accountable and document all activities associated with the transport of government information, devices, and media transported outside controlled areas and/or facilities. These include information stored on digital and non-digital media (e.g., CD-ROM, tapes, etc.), mobile/portable devices (e.g., USB flash drives, external hard drives, and SD cards).
- (2) All information, devices and media must be encrypted with HHS-approved encryption mechanisms to protect the confidentiality, integrity, and availability of all government information transported outside of controlled facilities.

(h) *Boundary Protection—Trusted Internet Connections (TIC).*

(1) The Contractor shall ensure that government information (other than unrestricted information) being transmitted from Federal government entities to external entities using cloud services is inspected by TIC processes that are in compliance with the requirements of the Office of Management and Budget Memorandum 19-26: Update to the TIC Initiative, TIC 3.0.

(2) The Contractor shall route all external connections through a TIC.

(3) Non-Repudiation. The Contractor shall provide a system that implements encryption with current FIPS 140 validation certificate from the NIST Cryptographic Module Validation Program that provides for origin authentication, data integrity, and signer non-repudiation.

(i) *Subcontract flow down*. The Contractor shall include the substance of this clause, including this paragraph (i), in subcontracts and third-party agreements, of any amount and in which subcontractor employees, and third-party servicers/employees, will perform functions where they will provide cloud computing services and have access to HHS information (including HHS sensitive information, *i.e.*, protected health information (see HHSAR 302.101, Definitions)), information systems, information technology (IT) or providing and accessing information technology-related contract services, support services, and related resources (see HHSAR 302.101 definition of information technology-related contracts).

(End of clause)

SECTION J - LIST OF ATTACHMENTS

The following attachments are made part of this solicitation:

Attachment	Title	No. of Pages
A	Performance Work Statement (PWS)	53
B	Non-Disclosure Agreement	1
C	Disclosure of Lobbying Activities	4
D	CPARS Information Sheet	1
E	HHS Subcontracting Plan Template	7

**SECTION K – REPRESENTATIONS, CERTIFICATIONS, AND OTHER
STATEMENTS OF OFFEROR**

Notice Listing Solicitation Provisions Incorporated by Reference

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its offer. In lieu of submitting the full text of these provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its offer. Also, the full text of a solicitation provision may be accessed electronically at this address below:

<https://acquisition.gov>

FEDERAL ACQUISITION REGULATION (FAR) (48 CFR Chapter 1)		
Number	Title	Date
52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014

K.1 The Offeror makes the following Representations and Certifications as part of its proposal

RFP No. 75R60226R00005

(Name of organization)

(Signature of authorized individual) (Date)

(Type name of authorized individual)

TIN No. _____

DUNS No. _____

Note: The penalty for knowingly and willingly making false statements in offers as prescribed in 18 U.S.C. 1001 is imprisonment not more than 5 years or, if the offense involves international or domestic terrorism (as defined in section 2331), imprisonment not more than 8 years, or both. If the matter relates to an offense under chapter 109A, 109B, 110, or 117, or section 1591, then the term of imprisonment imposed under this section shall not be more than 8 years.

FAR 52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the Offeror checked “has” in paragraph (b) of this provision, the Offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the Offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
 - (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (i) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could

have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the Offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the Offeror has provided the requested information with regard to each occurrence.

(d) The Offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

K.2 Responsible Official(s) Who Can Negotiate and Receive Notification of an Improper Invoice and Answer Questions Regarding the Invoice

Indicate below the responsible official(s) who can negotiate on behalf of the contractor and receive notification of an improper invoice and answer questions regarding the invoice (See FAR 52.232-25 Prompt Payment (JAN 2017)).

Name (Negotiator): _____

Address: _____

Telephone Number: _____

And,

Name (Payment): _____

Address: _____

Telephone Number: _____

SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFEROR

L.1 General Instructions

1. Your attention is directed to the requirements for the technical capability and business proposal information to be submitted in accordance with the following instructions establishing the minimum acceptable requirements for the format and content of proposals. Proposals must be complete at the time of proposal submission. Failure to submit a complete proposal at the time proposals are due may result in the exclusion of your proposal from further consideration by the Government for award of a contract.
2. Proposals shall be submitted single spaced, printable on 8.5 x 11-inch paper, 10-point font (Arial), 1-inch margins, with searchable features in the technical proposal and business proposal. 9-point font (Arial) will be allowed for tables and graphics 9- or 10-point font (Arial) will be allowed for headers and footers.
3. Each page shall be numbered, and each volume shall be tabbed to correspond to the table of contents. Cover page, table of contents, display graphics, flow charts, organizational charts, or drawings, will not be counted towards the page limit for the technical of business volume.
4. The clarity, relevance, and conciseness of the proposal is important, not the length.
5. Offerors who intend to keep certain data in their proposals confidential, preventing its public disclosure and limiting its use by the Government to evaluation purposes only, should clearly mark their proposals as directed by FAR 52.215-1(e).
6. This RFP does not commit the Government to pay any cost for preparing and submitting a proposal. In addition, the Contracting Officer is the only individual who can legally commit the Government to the expenditure of public funds in connection with this proposed acquisition.
7. A statement indicating whether or not any exceptions are taken to the terms and conditions of the RFP shall be part of the proposal transmittal letter. Any exceptions taken must include identification of the specific paragraphs and rationale for each exception. Exceptions shall also be noted in the specific Volume of the proposal, at the location of the exception. Offerors are cautioned that a proposal that fails to comply with or takes exception to a material term of the solicitation will be considered unacceptable and may not form the basis of award.
8. The proposal shall be submitted in the three volumes as outlined below:

VOLUME	TITLE
I	Technical Approach
II	Past Performance
III	Business Proposal

The Factor 1 – Technical Approach, the Factor 2 – Past Performance and Factor 3 - Business Proposal volumes/information shall be submitted separately and clearly labeled.

Each of these volumes shall be separate and complete in itself so that the evaluation of one may be accomplished independently of the evaluation of the other.

9. The Offeror's proposal must stipulate that it is predicated upon all the terms and conditions of this RFP. In addition, it must contain a statement to the effect that it is firm for a period of at least 180 days from the date of receipt by the Government.
10. The Offeror must submit proposals and data comprehensive enough to provide the basis for a sound evaluation. Proposals that do not include details sufficient to permit a meaningful evaluation may be deemed unacceptable and ineligible for contract award.
11. The proposal must be signed by an official authorized to bind your organization and must be submitted to Stephanie Petrone by email, at Spetrone@hrsa.gov and Jason Bonilla via email at JBonilla@hrsa.gov. Offerors are encouraged to request a delivery receipt to serve as evidence of timely receipt of its proposal to the government.
12. Volume I – Technical Approach, Volume 2 – Past Performance and Volume 3 – Business Proposal, must be submitted by **9:00 AM EST, February 20, 2026**

L.2 Amendment

1. Any resulting addition, deletion, or change to the RFP document will be made by issuing a formal amendment. Offerors are instructed specifically to contact only the issuing contract office in connection with any aspect of this requirement prior to contract award.

L.3 Technical Approach (Volume 1)

Offerors shall submit a single, stand-alone Technical Approach Volume that will be reviewed as part of the overall evaluation as indicated in Section M.

The Technical Approach Volume shall not exceed 25 pages (excluding resumes, organizational charts, and required certifications)

The Technical Approach Volume shall not contain references to price; however, resource information such as labor hours and categories, materials, and subcontracts may be included.

The Offeror shall provide sufficient information for the Government to determine its level of confidence in the Offeror's understanding of the requirements and ability to successfully perform the requirements of the PWS.

At a minimum, the Offeror must address the following:

1. Azure Migration Approach
 - a. Describe the approach the Offeror will take to migrate the Organ Transplant System to Azure, including the scope of work, and specifying proposed tasks and deliverables, divided into phases, from initial assessment of the migration, through post-migration support. The approach should include:
 - i. Recommended architecture and/or architectural framework
 - ii. Tasks accomplished and deliverables in each phase
 - b. Provide an estimated timeline with overall project duration, and not more than ten interim major milestones, using time in estimated months from the award date.

- c. The Offeror's phase descriptions for all tasks and deliverables should also include proposed work to ensure compliance with relevant security standards, as applicable, such as:
 - i. NIST SP 800-53 Rev. 5 controls
 - ii. Center of Internet Security (CIS) Benchmarks
 - iii. FISMA and FedRAMP Compliance
 - iv. Achieve an Authority to Operate (ATO) for the migrated system.
2. As outlined in the Submission Requirements above, Special Responsibility Standard, the Offeror must provide sufficient supporting documentation proving that the Offeror has the necessary permissions or access to UNOS proprietary systems that allows work to commence immediately upon award.
3. The Offeror shall clearly identify and explain any assumptions in their technical submission. If assumptions are not noted, it will be expected that the Offeror's quotation reflects no assumptions for award and agrees to comply with everything set forth in the RFP.
4. It is not the responsibility of the government to seek out and identify any assumptions, conditions, or exceptions for each vendor's quotation.
5. The Offeror shall clearly describe all non-price related exceptions they are taking with respect to the RFP and its requirements. If the Offeror is taking no exceptions, the Offeror clearly states that it takes no non-price related exceptions to the RFP and its requirements.

L.4 Past Performance (Volume 2)

The Offeror shall provide one (1) case study of a cloud migration project (government or commercial), and one (1) case study of operating an application similar to the Organ Transplant System. The case studies must have occurred within the last three (3) years. Some or all of the case studies provided can be fulfilled by subcontractors.

For each case study, provide:

1. Contract number
2. Customer agency/organization
3. Contract type and total value
4. Period of performance
5. Scope of work summary
6. Relevance to this PWS (describe similarities in scope, technical requirements, security requirements, or contract type)
 - a. Mission-critical systems requiring 99.9% or greater uptime
 - b. Systems processing sensitive data (PII, PHI, or CUI)
 - c. Completion within 18 months or less
 - d. For the migration case study only:
 - i. Migration from an on-premises infrastructure (Nutanix HCI, VMware, or similar hyperconverged platforms) to Microsoft Azure
 - ii. Completion within 18 months or less
7. Contract performance (describe any quality issues, schedule delays, cost overruns, or exceptional performance)

Note: The Government reserves the right to contact references not provided by the Offeror and to consider past performance information from other sources.

L.5 Business Proposal (Volume 3)

1. Offerors shall submit a single, stand-alone Business Proposal that will be reviewed as part of

the overall evaluation as indicated in Section M.

2. The Business Proposal shall provide:

- a. Breakdown of labor categories, hours, and materials that total the fixed price amount to assist in fair and reasonable determination
 - i. Include price broken out by task

L.6 Government Furnished Property

Government Furnished Equipment and Information is not expected to be provided by the Government under this Contract.

L.7 Smoke-Free Workplace

HHS strongly encourages all grantees and contractors to provide a smoke-free workplace and to promote the prohibition of all tobacco products. Public Law 103-227, the Pro-Children Act of 2001, prohibits smoking in certain facilities or in some cases, any portion of a facility, in which regular or routine education, library, day care, health care, or early childhood development services are provided to children.

L.8 FAR 52.233-2, Service of Protest (NOV 2025)

- (a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.
- (b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

L.9 FAR/HHSAR Provisions

Clause No.	Title	Date
52.204-7	System for Award Management	NOV 2025

INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION (FEB 2024) (DEVIATION)

All offers submitted in response to this solicitation or request for quotation shall address the approach for completing the security plan and accreditation requirements in clause 352.239-71, Security Requirements for Information Technology Resources.

(End of provision)

L.10 FAR 52.216-1 Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed Price Contract resulting from this solicitation.

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 General

In order for proposals to be considered acceptable and eligible for evaluation, they must be prepared in accordance with the instructions given in this RFP.

Award of the contract resulting from this solicitation will be made to the responsible offeror whose proposal offers the best value to the government, in full compliance to all other requirements set forth in this RFP. Non-responsible offerors will not be evaluated further or considered for award.

Special Responsibility Standard, the Offeror must provide sufficient supporting documentation proving that the Offeror has the necessary permissions or access to UNOS proprietary systems that allows work to commence immediately upon award.

M.2 Negotiations

Offerors are advised that the Government may elect to evaluate proposals and award a contract without discussions. Offerors shall provide their best, complete proposal upon initial submission. However, the Government reserves the right to hold discussions if deemed necessary by the Contracting Officer or make an award without discussions.

As the Government may award without discussions, the Government is requesting preferred cost reductions to Offeror's lowest Government contract or other preferred rates. Proposals should include the Offeror's best pricing, inclusive of all discounts.

M.3 Selection of Contract Awardee

The Government reserves the right to make no award as a result of this RFP. In addition, the RFP may be amended if determined to be in the best interest of the Government.

A Technical Evaluation Panel will evaluate proposals based on the evaluation criteria found in Section M of this solicitation and set forth below.

M.4 Award Criteria

The Government intends to evaluate Offeror proposals in accordance with Section M of this solicitation and make award on a Tradeoff Approach pursuant to the RFO 15.103-1. It may be in the Government's best interest to consider award to other than the lowest priced offeror or other than the highest technically rated offeror. This process permits tradeoffs among cost or price and non-price factors. The anticipated benefits of a higher priced proposal must merit the additional cost.

Basis upon which award will be made:

Factor 1: Technical Approach

Subfactor 1: Azure Migration Approach

Factor 2: Past Performance

Factor 3: Price

Best Value – Tradeoff analysis will be used to make an award decision. Factors 1–3 are listed in descending order of importance. Factor 1 (Technical Approach) is the most important, followed by

Factor 2 (Past Performance). When combined, Factors 1–2, are significantly more important than Factor 3 (Price).

The evaluation of Factor 1 (Technical Approach) will be conducted using confidence ratings, representing the Government’s confidence that the Offeror understands the requirement and will be successful in performing the work in the PWS.

The evaluation of Factor 2 (Past Performance) will be conducted using adjectival ratings.

Confidence ratings scale for Factor 1 – Technical Approach

Rating Scale	The below Rating Scale details how the Government will assign its evaluation of offers when evaluating Factor 1. • High Confidence - The Government has high confidence that the Offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with little or no Government intervention. • Some Confidence - The Government has some confidence that the Offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with some Government intervention. • Low Confidence - The Government has low confidence that the Offeror understands the requirement, proposes a sound approach, or will be successful in performing the contract even with Government intervention
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Adjectival ratings scale for Factor 2 – Past Performance

Rating Scale	The below Rating Scale details how the Government will assign its evaluation of offers when evaluating Factor 2. • Exceptional Confidence: Based on the offeror's recent/relevant performance record, the Government has very high confidence that the offeror will successfully perform the required effort. • Significant Confidence: Based on the offeror's recent/relevant performance record, the Government has high confidence that the offeror will successfully perform the required effort. • Satisfactory Confidence: Based on the offeror's recent/relevant performance record, the Government has reasonable confidence that the offeror will successfully perform the required effort. • Limited Confidence: Based on the offeror's recent/relevant performance record, the Government has reduced confidence that the offeror will successfully perform the required effort. • No Confidence: Based on the offeror's recent/relevant performance record, the Government has no confidence that the offeror will successfully perform the required effort.
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- | | |
|--|--|
| | <ul style="list-style-type: none">• Unknown Confidence: No recent/relevant performance record is available or offeror has no record of similar work. |
|--|--|

M.5 Evaluation Criteria

M.5.1. Factor 1 - Technical Approach (Volume 1)

The Government will assess its level of confidence of the offeror's understanding of the requirements and ability to successfully perform the Performance Work Statement. The Government will assess the soundness, feasibility, and risk associated with the proposed technical solution.

M.5.1.1 Subfactor 1 - Azure Cloud Migration Approach (Volume 1)

The Government will assess its level of confidence in the Offeror's proposed approach to migrating the Organ Transplant System to Microsoft Azure, including:

1. Migration Approach: Appropriate scoping of the work, as well as comprehensiveness and feasibility of the migration methodology, including assessment, migration strategy, execution, and validation/post-migration phases.
2. Target Azure Architecture: Appropriate architecture and framework
3. Tasks, and Deliverables: The Government will evaluate whether the proposed tasks and deliverables for each phase demonstrate an understanding of how to migrate the Organ Transplant System to Azure, and an ability to successfully deliver the cloud migration.
4. Timeline Realism: The Government will evaluate whether the proposed project timeline contains overall duration, with not more than ten interim milestones, uses duration in months from start date, and whether the timeline is realistic for the technical approach presented. Unrealistically short or long timelines may indicate a lack of understanding or an inability to perform successfully.
5. Maintaining compliance with federal requirements, including depth and appropriateness of security measures aligned with:
 - NIST SP 800-53 Rev. 5 controls
 - Center of Internet Security (CIS) Benchmarks
 - FISMA and FedRAMP .
 - Achieve an Authority to Operate (ATO) for the migrated system.

M.5.2 Factor 2 – Past Performance 1 - (Volume 2)

The Government will evaluate the offeror's (and subcontractors, if applicable) record of performance on contracts of similar scope, complexity, and value. The evaluation will focus on the offeror's demonstrated ability to successfully deliver cloud migration services for mission-critical systems.

For each submitted case study, the Government will assess:

1. Relevance: Similarity to the current requirement based on:
 - a. Mission-critical systems requiring 99.9% or greater uptime
 - b. Systems processing sensitive data (PII, PHI, or CUI)
 - c. For Migration case only:
 - i. Migration from an on-premises or collocated infrastructure (Nutanix HCI, VMware, or similar hyperconverged platforms) to Microsoft Azure
 - ii. Completion within 18 months or less
2. Performance Quality: Evidence of successful contract performance, including:
 - a. Technical performance and deliverable quality
 - b. Schedule adherence and timely completion
 - c. Cost control and absence of overruns

M.5.3 Factor 4 - Price (Volume 3)

Firm Fixed Price:

- 1) The Government will evaluate the total price for the Base Period, including the 6-month option authorized by FAR 52.217-8 for reasonableness.
- 2) The six (6) month extension of services is not to be considered part of any option period and will be a separately exercised option if utilized.
- 3) For evaluation purposes, the Government will utilize the Offeror's base period pricing for the last six months, which will represent the six (6) month extension of services period.
- 4) Evaluation of options will be conducted in accordance with FAR 52.217-5, Evaluation of Options. The objective of the evaluation of options is to determine that the price for each of the options to be fair and reasonable. The evaluation of options shall not obligate the Government to exercise any options

Attachment

**A: Performance Work Statement (PWS)
For
Organ Procurement and Transplantation Network (OPTN) Information Technology (IT)
System Cloud Migration
Date: February 04, 2026**

1. PROGRAM BACKGROUND

The Health Resources and Services Administration (HRSA), an agency within the U.S. Department of Health and Human Services (HHS), is the primary federal entity responsible for the oversight of organ and blood stem cell transplantation in the United States. HRSA administers programs and initiatives designed to increase deceased donor organ donation and expand opportunities for living donor organ donation, with the objective of extending and enhancing the lives of individuals for whom an organ transplant is the most appropriate therapeutic treatment.

Pursuant to this mission, HRSA oversees the Organ Procurement and Transplantation Network (OPTN), authorized by the National Organ Transplant Act of 1984 (NOTA), as amended, codified at 42 U.S.C. § 273 et seq., and implemented through the OPTN Final Rule, codified at 42 C.F.R. Part 121.

Current Environment

The OPTN Information Technology (IT) system is currently hosted on a Nutanix Hyper-Converged Infrastructure (HCI) collocated in Virginia and Texas. This infrastructure was originally implemented to consolidate compute, storage, and network resources for improved operational efficiency. However, the hardware is now at end of life (EOL) and the hardware manufacturer has allowed for limited extension in warranty at a substantially higher than normal cost for such hardware. It is imperative that the system be migrated to modern cloud-based infrastructure as quickly as possible for security and sustainability of operations. The current environment also presents limitations in scalability, maintainability, and cybersecurity compliance when compared to modern cloud and hybrid architectures.

Impact

Given that patient safety and lives depend upon the security, accuracy, reliability, and resilience of the OPTN system, migration to a modern cloud-based infrastructure is both urgent and mission-critical. The Government requires a secure, scalable, and resilient IT environment to ensure uninterrupted national transplant operations, enhance overall system performance, and align with current federal information technology standards, cybersecurity frameworks, and best practices.

Future Environment

At the completion of this contract, the OPTN core matching and allocation systems, together with the OPTN data services systems, across all operational environments—including production, test, and supporting environments—and across both primary and secondary/backup sites, shall be fully operational within Azure-hosted resources. HRSA has identified the Azure-cloud platform to be best suited for this migration based on the current .net technology stack and independent vendor research.

2. SCOPE OF WORK

The Contractor shall provide all personnel, management, materials, equipment, and services necessary to migrate the Organ Procurement and Transplantation Network (OPTN) Information Technology (IT) system from the existing on-premises Nutanix Hyper-Converged Infrastructure (HCI) to a modern, secure, scalable, and resilient cloud-based IT environment that meets current and future operational requirements.

The migration effort shall include, but is not limited to, the following activities:

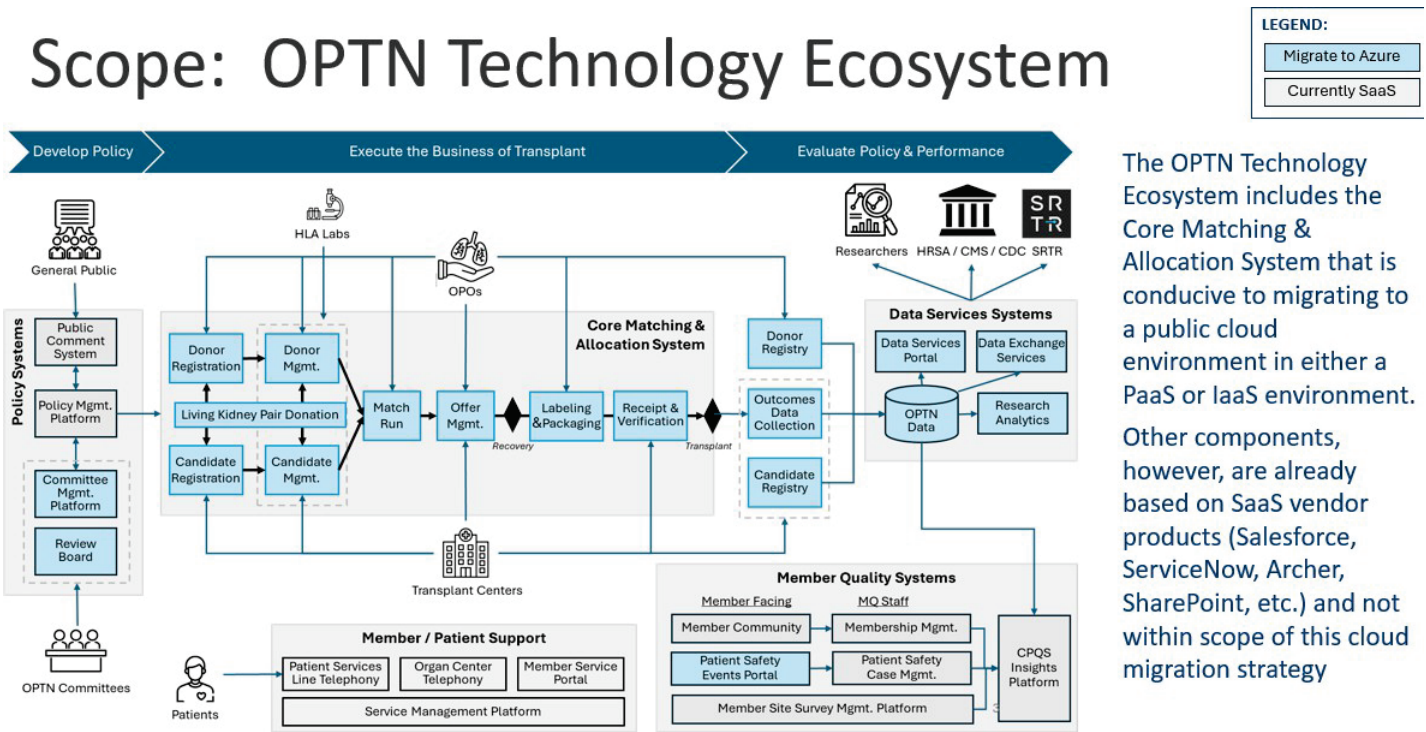
- **Assessment:** Assess the current infrastructure, applications, integrations, and data dependencies to establish a comprehensive understanding of the existing environment;
- **Design:** Design a target Microsoft Azure architecture that enhances system performance, cybersecurity, reliability, and compliance with applicable federal standards and policies;
- **Migration Strategy:** Develop and implement a detailed migration strategy that minimizes operational disruption and ensures continuity of national transplant operations;
- **Execution:** Execute the migration and configuration of all in-scope OPTN components within the Azure environment; and
- **Validation:** Ensure the continuity, accuracy, and integrity of all OPTN data and services throughout and following the transition.

The migration shall generally follow a “lift-and-shift” approach, prioritizing migration speed and operational continuity. Only minimal changes to software and systems shall be implemented, when necessary, to maintain functionality and compatibility within the Azure environment.

Upon project completion, the Azure-hosted OPTN systems shall demonstrate functionality, reliability, security, and performance equal to or greater than that of the current Nutanix-based environment.

The following diagram illustrates, in blue, the OPTN system components that are in scope for migration under this PWS. This includes all components of the core matching and allocation system and the data services systems to be transitioned to Azure.

Components in gray, and any components not on this diagram, are not in scope for this PWS and shall not be included in this migration effort.



This contract will be on a Firm Fixed Price basis.

3. TASK ORDER ADMINISTRATION

3.1. PERIOD OF PERFORMANCE

The total period of performance for this effort shall not exceed 16 months. These performance periods are not inclusive of the Government's ability to utilize FAR 52.217-8.

3.2. PLACE OF PERFORMANCE

The work identified under this effort shall be performed off-site at the Contractor's facility.

3.3. TRAVEL

Travel may be considered under this effort. The Contractor must submit for Contracting Officer Authorization (COA) at least two (2) weeks prior to the anticipated time of the travel, unless an approved exception is made by the CO prior to travel. The Contractor must not travel until the COA is received. All travel shall be in accordance with the Federal Travel Regulations (FTR).

A COA Request must reflect the following elements:

- a. the destination
- b. purpose of the trip
- c. the dates of travel
- d. the number of travelers
- e. Travelers' Names/Titles
- f. Lodging Costs
- g. Transportation Cost including:
 - i. Airfare cost
 - ii. Hotel Costs
 - iii. Car Rental Transit or Other transportation Cost
- h. The total estimated travel costs
- i. Copy of the relevant GSA Per Diem rates for the destination. The GSA Per Diem rates can be found using the following link:
<https://www.gsa.gov/travel/plan-book/per-diem-rates>

3.4. GOVERNMENT FURNISHED EQUIPMENT/INFORMATION

Government Furnished Equipment and Information is not expected to be provided by the Government under this Contract. However, because government funding is being used for performing this work, the contractor must leverage the discounted pricing available for Microsoft Azure cloud services and products planned to be utilized during the execution of this project as advertised under the recent General Services Administration (GSA) OneGov Agreement with Microsoft¹. The Government can facilitate the discussions to obtain the deeply discounted pricing with Microsoft as needed.

3.5. LIMITATION OF FUNDS

The Government is not obligated to reimburse the Contractor for any cost incurred in excess of the task order obligated funds. The Contractor must notify the CO and COR in writing, whenever it has reason to believe that in

¹ Multi-Billion Dollar GSA OneGov Agreement with Microsoft Brings Steep Discounts for Microsoft 365, Copilot, and Azure Cloud Services. <https://www.gsa.gov/about-us/newsroom/news-releases/multibillion-dollar-gsa-onegov-agreement-with-microsoft-brings-steep-discounts-09022025>

the next sixty (60) days, the charges to the government will exceed 75% of the obligated funds. The notice is to include the estimated amount of additional funds required to complete contractor performance.

4. CONTRACTOR RESPONSIBILITIES

4.1. KEY PERSONNEL

Contractor must establish and present to the government prior to task order award, one (1) Key Personnel who is a single management focal point, Project Manager (PM), who, at a minimum:

- Accomplish the administrative, managerial, technical, and financial aspects of this Task Order.
- Is a direct liaison to the COR and attends regular check-in meetings.
- Has a full understanding of the work requirements, technical approach, and labor categories.
- Is responsible for the technical direction, supervision and management of the contractor's personnel.
- Submits a written Quality Control Plan (QCP); implements and maintains effective quality control.
- Submits Quarterly progress reports

Contractor agrees that the key personnel shall not be removed from the contract effort or replaced without a replacement of similar qualifications who shall be on-boarded in time to avoid any break in support for that labor category. The Contractor must also submit a Letter of Commitment (LOC) signed by the key personnel to demonstrate the commitment of the individual to serve in this specific role upon contract award.

4.2. QUALITY CONTROL PLAN

The Contractor shall develop and maintain a Quality Control Plan (QCP) to ensure services are performed in accordance with this PWS. The Contractor's Proposed QCP shall be submitted to the Contracting Officer for review within ten (10) days after date of contract award.

The Government will review and either notify the Contractor in writing of acceptance of the plan or return their comments to the Contractor within ten (10) days. If the Government has provided comments, the Contractor shall then have ten (10) days to submit a Final QCP. After receipt of the Final QCP, the Contractor may receive the Contracting Officer's acceptance in writing. Any proposed changes to the accepted QCP are required to be resubmitted for acceptance by the Contracting Officer no later than thirty (30) days prior to the anticipated change and before implementation by the Contractor. The timeline noted above will apply for review and acceptance of proposed changes.

At a minimum, the QCP must include and answer the following to be acceptable:

- How the Contractor will monitor work to ensure performance complies with all deliverables (etc. timelines, deadlines, and goals);
- How the Contractor will monitor work to ensure performance complies with all specifications and requirements of the contract, including the contract's clauses; and
- How the Contractor will identify, investigate, and correct any non-conforming performance and prevent similar deficiencies in the future.

The Government will utilize the Final QCP to develop the Quality Assurance Surveillance Plan (QASP) which will be used to evaluate and manage the Contractor's performance under this contract.

4.3. PERFORMANCE CONSTRAINTS (APPLICABLE TO ALL TASKS)

4.3.1 Security and Compliance Requirements

The Contractor shall:

- 4.3.1.1 Implement and maintain all activities in compliance with NIST SP 800-53 Rev. 5, FISMA, FedRAMP, and HHS/HRSA IT security and privacy policies.
- 4.3.1.2 Support the Risk Management Framework (RMF) lifecycle associated with the OPTN Authority to Operate (ATO) and shall permit federal oversight, monitoring, and automated tool-based compliance verification.
- 4.3.1.3 Configure all Azure environments consistent so they can meet future Zero Trust Architecture and applicable federal cyber-security protection requirements.
- 4.3.1.4 Ensure that all deliverables, configurations, and documentation satisfy ATO controls and cybersecurity baselines prior to commencing operations.

4.3.2 Continuity and Operational Integrity

The Contractor shall:

- 4.3.2.1 Shall perform migration and operational activities without disrupting ongoing OPTN system services.
- 4.3.2.2 Maintain functional, security, and performance equivalence with the current Nutanix environment.
- 4.3.2.3 Provide multi-regional redundancy, geo-replication, and documented disaster-recovery testing.
- 4.3.2.4 Schedule any downtime through approved change-control procedures.
- 4.3.2.5 Conduct pre-and post-migration validations to confirm system readiness, stability, performance, and compliance.

4.3.3 Government Access and Coordination

The Contractor shall:

- 4.3.3.1 Provide to personnel designated by HHS/HRSA: access at a Azure Global Administrator or equivalent role-based access to all cloud resources funded or established under this contract.
- 4.3.3.2 Provision and manage such access per HHS/HRSA security policies in coordination with the designated Government stakeholder(s).
- 4.3.3.3 To ensure compliance with the DHS Cybersecurity and Infrastructure Security Agency (CISA)Continuous Diagnostics and Mitigation (CDM) program and NIST SP 800-53 Revision 5 controls, all code, infrastructure and artifacts must be stored in a FedRAMP-authorized repository. The code, repository, and assets stood up must provide full access to HHS and HRSA's vulnerability and code scanning tools to facilitate continuous security assessment and compliance monitoring. The types of scans performed may include: NIST developer testing and

evaluation², CISA CDM/asset scanning³ and penetration testing⁴.

4.3.3.4 Obtain written approval from the Contracting Officer to begin work on any new task. Verbal or implied direction does not constitute authorization.

4.3.4 **Data Ownership and Custodianship**

4.3.4.1 All software, data, scripts, and documentation produced under this contract are the property of the U.S. Government.

4.3.4.2 The Contractor shall preserve data integrity, confidentiality, and availability throughout performance and transfer all data, configurations, and documentation produced under this contract to the Government upon completion or termination.

4.3.4.3 Contractor shall collaborate with HRSA's Data Analytics and engineering contractor for conducting the *discovery/planning* for implementing the near real time data synchronization of data instead of monthly data dumps (OPTIONAL TASK)

4.3.4.4 Contractor shall collaborate with HRSA's Enterprise architecture team for technical reviews and approvals related to all data architecture and significant changes related to data platform (examples: migration of databases to Platform as a Service (PaaS) or Software as a Service (SaaS) offerings including DataOps pipelines)

4.3.5 **Accountability and Flow-Down**

4.3.5.1 The requirements of this section 4.3 apply to all subcontractors and suppliers. The Contractor remains fully responsible for their compliance.

4.3.5.2 Any deviation from this section requires prior written approval from the CO.

4.3.5.3 The Government may audit, inspect, or test the system configuration, perform architecture reviews, conduct security baseline reviews, etc. using available federal software tools or 3rd party tools and independent vendors for compliance at agreed intervals (monthly or less often, scheduled in advance) without additional cost to the Government.

4.3.6 **Functional and Security Equivalence to the current systems**

The Contractor shall:

Provide functionality, security, reliability, performance, and resilience that are at least equivalent to the existing on-premises Nutanix environments. Areas of equivalence include, but are not limited to:

- a. Security controls and documentation (CIS benchmark, NIST SP 800-53 Rev. 5 alignment and ATO compliance)

² NIST 800-53 [SA-11: Developer Testing and Evaluation - CSF Tools](#)

³ CISA Continuous Diagnostics and Mitigation Program Technical Capabilities Volume Two: Requirements Catalog [CDM_Tech_Volume2_v2.5.pdf](#) and BOD 23-01: <https://www.cisa.gov/news-events/directives/bod-23-01-improving-asset-visibility-and-vulnerability-detection-federal-networks>

⁴ NIST 800-53 [CA-8: Penetration Testing - CSF Tools](#)

- b. Identity and access controls
- c. Encryption, Role-based access control (RBAC), and Multi-factor authentication (MFA)
- d. Monitoring, telemetry, and logging, internal and government penetration testing
- e. Match-run performance
- f. Testing, Quality Assurance (QA), verification, and validation processes
- g. Maintenance, feature, and data deployment processes
- h. Incident response capabilities
- i. Operational resilience and redundancy
- j. Documentation, training, and support readiness
- k. User-facing performance and speed
- l. System uptime and availability
- m. Disaster recovery and backup systems, including cutover procedures and testing
- n. SLA performance, support availability, and incident response times
- o. Engineering and change-management practices
- p. Identification and mitigation of any single points of failure in the current system

- q. Databases, data pipelines, and data transport and transfer systems, both internal and external.

5. PROGRAM TASKS AND DELIVERABLES

Contractor shall perform the following tasks:

5.1. TASK 1 - Discovery, Assessment and Planning

Task Objective: The objective of this task is to establish a comprehensive understanding of the current OPTN Nutanix infrastructure and develop a future-state design for migration to Microsoft Azure. The design and all supporting activities shall conform to CIS benchmark (work with HRSA security team for applicable benchmarks/controls), NIST SP 800-53 Rev. 5 and FISMA High compliance standards.

The Contractor shall conduct detailed discovery, assessment, and planning activities to define the technical, security, and operational requirements necessary to support the migration effort.

Tasks:

The Contractor shall:

5.1.1 Cloud Foundations Workshops.

Conduct Cloud Foundations Workshops with OPTN Stakeholders including representation from the Contractor and HHS/HRSA, across Governance, Network and Connectivity, Identity and Access, Management, and Security domains. These workshops shall be used to develop the Azure Landing Zone and System architecture integrated with DevSecOps principles.

5.1.2 Azure Architecture Design.

Design the target Azure architecture in alignment with CIS benchmark, NIST SP 800-53 Rev. 5 and the Azure Well-Architected Framework.

5.1.3 Automated Discovery.

Deploy automated discovery tools including Azure Migrate, RVTools, Microsoft Assessment and Planning Toolkit (MAP), and Data Migration Assistant (DMA) to collect detailed infrastructure data and perform compatibility assessments.

5.1.4 Manual Validation.

Manually validate the results of automated discovery tools to ensure data completeness, accuracy, and reliability.

5.1.5 Configuration Management Database (CMDB).

Create and maintain a CMDB documenting all applications, servers, and infrastructure components, including version information, licensing, interdependencies, and associated Service Level Agreements (SLAs).

5.1.6 Dependency Mapping and Risk Analysis.

Perform dependency mapping, risk analysis, and compliance assessments to identify operational, technical, and regulatory gaps.

5.1.7 Migration Planning and Architecture Documentation.

Develop and deliver a final Migration Plan and Roadmap, and an Azure Landing Zone and System Architecture. Document reflecting governance, network topology, Zero Trust security controls, and operational compliance parameters.

5.1.8 Infrastructure-as-Code (IaC) Enablement.

Ensure that the architecture and migration plans enable deployment of all infrastructure using automated Infrastructure-as-Code (IaC) with approved methodologies. All IaC scripts must be version-controlled and maintained in the FedRAMP authorized repository.

5.1.9 Architecture Design Review (ADR).

Conduct Architecture Design Reviews with HHS/HRSA technical reviewers. The ADR shall include an evaluation of potential single points of failure in the proposed cloud architecture. No implementation activities shall commence until the ADR has been approved in writing by the Contracting Officer.

Deliverables for 5.1:

The Contractor shall provide the following deliverables in accordance with the requirements of this task:

Deliverable No.	Deliverable Title	Description	Due Date
5.1.A	Discovery & Migration Assessment Report	A comprehensive report documenting findings from automated and manual discovery activities, including inventory of systems, dependencies, and compliance posture.	90 Days After Contract Award
5.1.B	Azure Landing Zone and System Architecture Document	A detailed document describing the Azure Landing Zone and System architecture and Well-Architected Framework alignment, including assessments of all applications, data, workloads, disaster recovery, and backup plans.	90 Days After Contract Award
5.1.C	Comprehensive Migration Plan and Roadmap	A detailed migration plan outlining sequencing (if applicable), risk mitigation strategies, and proposed timelines, with sufficient detail to support subsequent project phases.	90 Days After Contract

Deliverable No.	Deliverable Title	Description	Due Date
			Award

All deliverables shall:

- Conform to the requirements of this PWS and applicable HHS IT and Security policies, including NIST SP 800-53 Rev. 5 and FISMA High controls;
- Be delivered in an editable electronic format (e.g., Microsoft Word, Excel, or Visio, as appropriate);
- Be free from grammatical, formatting, or typographical errors; and
- Be subject to review and written acceptance by the Contracting Officer (CO) or the Contracting Officer's Representative (COR) within ten (10) business days of submission.

5.2. TASK 2 - Environmental Build and Security Embedding

Task Objective: The objective of this task is to design, configure, and deploy the Microsoft Azure cloud environments that will serve as the operational foundation for the OPTN system, embedding all required security, compliance, and observability controls.

The Contractor shall perform all activities necessary to establish secure, scalable, and compliant cloud environments aligned with HHS/HRSA and federal cybersecurity standards.

Tasks:

The Contractor shall:

5.2.1 Azure Environment Deployment.

Deploy Azure Operations and Application Landing Zones for Development, Testing, Staging, Production, Training and Demonstration environments using approved Infrastructure-as-Code (IaC), as specified in the deliverables from Task 5.1 (Discovery, Assessment, and Planning).

5.2.2 DevSecOps Pipeline Integration.

Integrate Continuous Integration (CI) pipelines with automated code scanning, code coverage thresholds, and security validation in a DevSecOps workflow using Azure DevOps or GitHub Actions. The goal is to enable automated provisioning, testing, build validation, and vulnerability detection during the integration/build process. The pipeline should incorporate the following key components:

Cloud based and FedRAMP compliant Repository: Store all source code and other artifacts in the repository in support of DevSecOps and CDM operations.

Automated Build and Provisioning: Configure continuous integration processes to automatically build, test, and deploy application code.

Code Scanning and Security Analysis: Integrate comprehensive security testing into the pipeline, including Static Application Security Testing (SAST), Dynamic Application Security Testing (DAST), and Software Composition Analysis (SCA) using approved and compliant DevSecOps tools to identify vulnerabilities, insecure coding practices, and dependency risks early in the development lifecycle.

5.2.3 High Availability and Disaster Recovery.

Configure high-availability and disaster recovery (HA/DR) mechanisms leveraging Azure Front Door, Azure Load

Balancer, and Azure Site Recovery (ASR) to ensure resiliency and continuity of operations.

5.2.4 ____ Authorization to Operate (ATO) Readiness.

Prepare for the Authorization to Operate (ATO) Package submission in the next task by ensuring that all deployed cloud environments can meet OPTN ATO control requirements and associated compliance standards.

5.2.5 Continuous Monitoring Configuration.

Configure continuous monitoring using Azure Monitor, Log Analytics, Microsoft Sentinel, and Splunk to provide end-to-end visibility into system health, performance, and security posture.

5.2.6 Automated Compliance and Threat Detection.

Deploy automated compliance validation and threat detection using tools such as Microsoft Defender for Cloud, with real-time alerting and continuous security baselining.

5.2.7 Embedded Security Controls.

Embed security and compliance checks into DevSecOps pipelines and implement automated configuration scanning, vulnerability management, and patch deployment to maintain a secure operational environment.

5.2.8 Tenant Hardening.

Implement Azure tenant hardening to establish a secure baseline across all subscriptions. Configure Entra ID security controls (e.g., Conditional Access, PIM, MFA), align management group hierarchy and policy inheritance, apply Azure Policy/Blueprints, restrict unnecessary services, and enforce least-privilege access. Ensure compliance with federal (CIS, DISA STIG, or equivalent) and HHS/HRSA requirements.

5.2.9 Enterprise logging and compliance integration

Ensure that all systems are integrated with the enterprise log collection, retention, and analytics framework. Logging configurations must comply with established enterprise security, monitoring, and compliance requirements to enable centralized visibility, incident response, and audit readiness.

Deliverables for 5.2:

The Contractor shall provide the following deliverables in accordance with the requirements of this task:

Deliverable No.	Deliverable Title	Description	Due Date
5.2.A	Security and Compliance Documentation	Comprehensive documentation of all security controls, compliance mappings, and configurations implemented in Azure environments, aligned with NIST SP 800-53 Rev. 5 and FISMA High.	150 Days After Contract Award
5.2.B	IaC Deployment Scripts and Configuration Baselines	Complete Infrastructure-as-Code scripts, configuration templates, and baseline documentation for all deployed environments.	150 Days After Contract Award
5.2.C	Comprehensive Migration Plan	Updated migration plan reflecting finalized environment configurations, automation	150 Days After

		processes, and compliance controls.	Contract Award
5.2.D	Disaster Recovery and Failover Validation Report	Report documenting the design, testing, and validation of disaster recovery and failover procedures for all environments.	150 Days After Contract Award
5.2.E	Access Control Matrix (ACM) and Configuration Management Plan (CMP)	A detailed plan outlining user roles, access controls, configuration management procedures, and alignment with least-privilege and Zero Trust principles.	150 Days After Contract Award
5.2.F	Tenant Hardening Implementation Report	Documentation and configuration evidence of Azure tenant hardening, including Entra ID security settings, policy hierarchy, and compliance with federal and HHS/HRSA baselines.	150 Days After Contract Award

All deliverables shall:

- Comply with the requirements of this PWS and applicable HHS IT Security and Cybersecurity Program policies;
- Align with CIS benchmark, NIST SP 800-53 Rev. 5, FISMA High, and Zero Trust Architecture (ZTA) requirements;
- Be provided in editable electronic formats (e.g., Microsoft Word, Excel, or Visio, as appropriate); and
- Be subject to review and written acceptance by the Contracting Officer (CO) or the Contracting Officer's Representative (COR) within ten (10) business days of submission.

5.3. TASK 3 - Migration Execution and Cutover

Task Objective: The objective of this task is to execute the migration of applications, servers, and data to the Azure environment using a controlled and validated process to ensure performance, reliability, and compliance.

The Contractor shall perform all activities necessary to migrate workloads securely, maintain operational continuity, and validate that the migrated environment meets all technical, security, and operational requirements.

Tasks:

The Contractor shall:

5.3.1 Secure Migration Execution.

Execute the secure migration of all OPTN systems, applications, and databases from the existing UNOS-managed on-premises environments to the newly established Azure cloud environment approved under Task 5.2 (Environmental Build and Security Embedding). All migrations shall be planned, documented, traceable, and verifiable.

5.3.2 Data Integrity and Continuity.

Ensure zero data loss, maintain operational continuity, and provide a complete audit trail for every migrated workload.

5.3.3 Migration Validation.

Be solely responsible for validating all migration activities and ensuring that performance, functionality, and security controls meet or exceed pre-migration baselines before any cutover is accepted by the Government.

5.3.4 Environment Segregation.

Perform VNET segregation of non-production environments (e.g., Development, Test) from production environments with no shared routes to corporate workloads.

5.3.5 Environment Readiness Validation.

Validate the readiness of all Azure environments prior to migration, including VNET segmentation, routing configurations, and tagging standards.

5.3.6 Migration Documentation.

Maintain detailed migration logs, configuration change documentation, and audit trails for all migrated workloads.

5.3.7 Testing and Compliance Verification.

Conduct functional, performance, correctness, and security testing for each migration wave, to ensure compliance with NIST SP-800-53 Rev.5 and all other system requirements.

5.3.8 Failover and Disaster Recovery Testing.

Conduct failover and fallback testing to validate resiliency and disaster recovery capabilities.

5.3.9 Cutover Planning and Execution.

Develop and execute a Cutover Plan including rollback procedures and validation checkpoints to minimize operational downtime.

5.3.10 User Acceptance Testing (UAT).

Perform UAT with application owners to confirm system readiness and obtain formal acceptance. Ensure all security, compliance, and operational requirements are satisfied prior to production acceptance.

5.3.11 ATO Submission and Cutover Implementation.

Submit ATO package for HHS/HRSA approval. After receiving ATO approval, communicate with OPTN stakeholders and implement the approved cutover plan.

Deliverables for 5.3:

The Contractor shall provide the following deliverables in accordance with the requirements of this task:

Deliverable No.	Deliverable Title	Description	Due Date
5.3.A	Updated Security Authorization (ATO) Package	Includes System Security Plan (SSP), Security Assessment Plan (SAP), Security Assessment Report (SAR), Plan of Action & Milestones (POA&M), and all required documentation	270 Days After Contract

		for HHS/HRSA approval.	Award
5.3.B	Migration Execution Plan and Logs	Detailed plan of migration waves, scheduling, rollback procedures, and migration logs for all workloads.	270 Days After Contract Award
5.3.C	Testing and Validation Reports	Reports documenting results of functional, performance, correctness, security, and failover testing.	270 Days After Contract Award
5.3.D	Cutover Plan and Completion Certificate	Approved cutover plan and formal certificate of completion following successful production migration.	270 Days After Contract Award
5.3.E	Post-Migration Audit Report	Documentation of all post-migration verification activities, including compliance validation, performance checks, and operational readiness.	270 Days After Contract Award
5.3.F	Change Control and Configuration Logs	Complete record of all configuration changes, approvals, and versioning during migration execution.	270 Days After Contract Award

All deliverables shall:

- Comply with the requirements of this PWS and applicable HHS IT Security and Cybersecurity Program policies;
- Demonstrate alignment with NIST SP 800-53 Rev. 5, FISMA High, and Zero Trust Architecture (ZTA) principles;
- Be delivered in editable electronic formats (e.g., Word, Excel, Visio); and
- Be subject to review and written acceptance by the Contracting Officer (CO) or the Contracting Officer's Representative (COR) within ten (10) business days of submission.

5.4. TASK 4 - Post-Migration Validation and Support

Task Objective: The objective of this task is to validate the stability, performance, and compliance of the migrated environment, transfer operational knowledge to contractor and HHS/HRSA personnel, and ensure ongoing support during the post-migration stabilization period.

The Contractor shall perform all activities necessary to confirm that the Azure environment is fully operational, secure, optimized, and ready for sustained operations by HHS/HRSA and UNOS personnel.

Tasks:

The Contractor shall:

5.4.1 Post-Migration Testing and Optimization.

Perform post-migration testing, system optimization, and documentation activities to confirm that all systems are operating effectively, securely, and in alignment with migration objectives.

5.4.2 Operational Validation.

Validate that all applications, databases, and integrations are functioning as designed within Azure, that necessary monitoring and alerting mechanisms are in place, and that backups are scheduled and operational.

5.4.3 Monitoring and Compliance Verification.

Verify that monitoring, logging, and backup systems are fully operational and compliant with CIS Benchmarks, NIST SP 800-53 Rev. 5 and FISMA High requirements as specified in the OPTN ATO.

5.4.4 Security Assessments and ATO Updates.

Coordinate with HHS/HRSA ISSO to conduct final security assessments and update the Security Authorization Package as needed, including but not limited to the Risk Assessment Report (RAR), IT Continuity Plan, Configuration Management Plan (CMP), Business Impact Analysis (BIA), Risk Management Plan, System Security Plan (SSP), Security Assessment Plan (SAP), Security Assessment Report (SAR), and Plan of Actions and Milestones (POA&M).

5.4.5 Post-Cutover Hypercare Support.

Provide a minimum of ninety (90) days of hypercare support following cutover to address any post-migration issues, troubleshoot operational anomalies, and ensure system stability.

5.4.6 Training and Knowledge Transfer.

Deliver training and knowledge transfer sessions for UNOS Operations and Maintenance (O&M) personnel, including documentation of standard operating procedures, runbooks, and incident response workflows.

5.4.7 Azure Cost and Performance Optimization.

Perform cost and performance optimization in Azure including right-sizing of resources, reserved instance analysis, automation of scaling policies, and Identification of inefficiencies and recommendations for optimization.

Deliverables for 5.4:

The Contractor shall provide the following deliverables in accordance with the requirements of this task:

Deliverable No.	Deliverable Title	Description	Due Date
5.4.A	Post-Migration Validation Report	Documentation of testing results, validation activities, and confirmation that all systems are stable, functional, and compliant.	390 Days After Contract Award
5.4.B	Updated Security Authorization (ATO)	Revised SSP, SAP, SAR, POA&M, and any additional security documentation required	390 Days After

	Package	following post-migration assessment.	Contract Award
5.4.C	Training and Knowledge Transfer Materials	All training content, session recordings, runbooks, SOPs, and incident response procedures for UNOS O&M personnel.	390 Days After Contract Award
5.4.D	Optimization and Cost Report	Analysis and recommendations for cost and performance optimization in Azure, including right-sizing and scaling strategies.	390 Days After Contract Award
5.4.E	Final Stabilization Report	Comprehensive report summarizing post-migration support activities, issue resolutions, and operational readiness of the migrated environment.	390 Days After Contract Award

All deliverables shall:

- Comply with the requirements of this PWS and applicable HHS IT Security and Cybersecurity Program policies;
- Demonstrate alignment with NIST SP 800-53 Rev. 5, FISMA High, and Zero Trust Architecture (ZTA) principles;
- Be delivered in editable electronic formats (e.g., Word, Excel, Visio); and
- Be subject to review and written acceptance by the Contracting Officer (CO) or the Contracting Officer's Representative (COR) within ten (10) business days of submission.

5.2. TASK 5 - Project Management and Progress Reporting

5.2.a. Kickoff Meeting

The CO will schedule a virtual contract kickoff meeting with the Contractor staff within ten (10) business days of the award. The CO, the COR, and other designated government officials will be present. It will be at the Contractor Key Personnel's discretion to invite the appropriate contract personnel, as needed, to the meeting.

The Contractor shall submit a Kickoff Meeting Agenda electronically to the COR for approval at least two (2) business days before the kickoff meeting. The Kickoff Meeting Agenda, at a minimum, shall address each of the following objectives:

- Introduce key project participants and identify their roles to initiate the communication process between the COR, other designated government officials, other HRSA contractor(s), and the Contractor.
- Establish and review contract expectations.
- Discuss the proposed approach to meet the governments requirements.
- Review the draft Project Management Plan submitted with the solicitation proposal package.
- Review invoicing requirements.

Submit detailed Meeting Minutes electronically to the COR within two (2) business days following the kickoff meeting. The Meeting Minutes shall include, at a minimum, a list of action items, major issue encountered, agreements/disagreements, resolutions, corrective actions and personnel assigned to action items, and due dates.

Deliverables:

- A. Kickoff Meeting Agenda
- B. Meeting Minutes

5.2.b. Project Management Plan

The Contractor Shall:

- 1) Submit a Draft Project Management Plan electronically to the COR for approval within five (5) business days after the kickoff meeting. The Updated Draft Project Management Plan shall be included in the proposal package and be the basis of the kickoff meeting discussion. The Draft Project Management Plan shall include at a minimum an Integrated Master Schedule (IMS) Risk and Issue Register and Quality Management Plan (QCP) and address the recommendations provided by the COR and other COR designated government officials during the project kickoff meeting.
- 2) Submit a Final Project Management Plan addressing all COR feedback electronically to the COR for approval within two (2) business days after receipt of COR feedback.
- 3) Implement the COR approved Final Project Management Plan

Deliverables:

- A. Draft Project Management Plan
- B. Final Project Management Plan

5.2.c. Progress Reporting

The Contractor Shall:

- 1) Conduct one (1) weekly conference call with the COR and other COR designated government officials to discuss the status of the activities under the contract. Weekly conference calls requirements include:
 - a) Submit an agenda electronically to the COR no later than one (1) business day before each call. The agenda shall follow a format approved by the COR. At a minimum, the conference call agenda shall include documentation that demonstrates project status, level of effort (LOE), timelines, risks, and mitigations to identified risks.
 - b) Submit a comprehensive summary of each conference call electronically to the COR within two (2) business days following the call. The conference call summary shall include at a minimum a summary of issues discussed, action items, the personnel assigned to action items, and due dates.
- 2) Hold quarterly progress report meetings and submit Quarterly Progress Reports electronically to the COR for approval within five (5) business days after the end of the prior quarter. If COR requires changes, submit a Final Quarterly Progress Report electronically to the COR within five (5) business days after receipt of COR feedback. Quarterly Progress Reporting requirements include:
 - a) Submit a format for the Quarterly Progress Reports to the COR for approval within thirty (30) calendar days after the EDOC. If COR requires changes, submit a Final format of the Quarterly Progress Reports electronically to the COR within five (5) business days after receipt of COR feedback. The format shall include, at minimum, a status of progress toward completion of activities to date as outlined in the Project Management Plan, accomplishments, challenges, identified risks and vulnerabilities, actions taken to mitigate the risks and vulnerabilities during the previous performance period, and activities to be performed during the subsequent reporting period.

- b) Submit a Quarterly Progress Meeting Agenda electronically to the COR for approval at least two (2) business days in advance of each meeting. The agenda shall follow a format approved by the COR. The meeting agenda shall include discussion and documentation that covers project status, level of effort (LOE), timelines, risks, and mitigations to identified risks. Agendas shall also include all departmental and functional area task updates. If COR requires changes, submit a Final Quarterly Progress Meeting Agenda electronically to the COR within five (5) business days after receipt of COR feedback.
 - c) Conduct Quarterly Progress Meetings within fifteen (15) days after the start of quarters two, three, and four. The Quarterly Progress Meetings shall include the COR and COR designated government officials and shall discuss the status of progress toward completion of activities under the contract. Meetings shall occur virtually. The Contractor shall furnish a platform approved by the COR for hosting the meetings.
 - d) Submit Quarterly Progress Reports electronically to the COR for approval within five (5) business days after the end of the prior quarter. If COR requires changes, submit a Final Quarterly Progress Report electronically to the COR within five (5) business days after receipt of COR feedback.
- 3) Submit the Annual Report of work accomplished under the contract electronically to the COR for approval within thirty (30) days before the end of the base year. The report shall include an executive summary, align with the approved activities under the contract, and be visually appealing with standard font and spacing, and including graphics as appropriate. If the COR requires changes, submit a Final Annual Report electronically to the COR within five (5) business days after receipt of COR feedback.

Deliverables:

- A. Weekly Conference Call Agenda
- B. Weekly Conference Call Summary
- C. Draft Quarterly Progress Report
- D. Final Quarterly Progress Report
- E. Draft Quarterly Progress Meeting Agenda
- F. Final Quarterly Progress Meeting Agenda
- G. Draft Quarterly Progress Report
- H. Final Quarterly Progress Report
- I. Draft Annual Report
- J. Final Annual Report

NOTE: Please refer to Table 1 under 6. SCHEDULE OF DELIVERABLES for above deliverables due dates.

5.3. Entity Supporting the OPTN

5.3.a. Communication Requirements

5.3.a.1 Public Communications and Branding

The Contractor Shall:

- 1) Receive prior approval from the Contracting Officer (CO), COR, and/or HSB Communication Team for any public statements, press releases, or media communications related to their work on the OPTN Modernization, including responding to media inquiries.
- 2) Coordinate all public communication activities with the HSB Communication Team prior to the dissemination of any information, unless otherwise noted by the COR and/or HSB Communication Team. This includes receiving written approval from the COR and/or HSB Communication Team before release of any public materials such as website content, mass emails, public-facing presentations, or similar communications.

- 3) Respond within one (1) business day to any request from the COR and/or HSB Communication Team for information, including those related to media inquiries. The COR or HSB Communications Team may provide a longer timeframe for more complex information requests. If the contractor believes additional time is necessary, inform the COR or HSB Communications Team as soon as practicable.
- 4) Ensure all public facing materials adhere to HRSA and/or OPTN branding guidelines, as approved by the COR and/or HSB Communication Team.
- 5) Ensure all OPTN products produced under this task order are branded as OPTN products. Contractors shall not brand any OPTN product as a product of the entity supporting the OPTN or as joint OPTN products. Additionally, no contractor shall brand any product not produced or approved to support the OPTN as an OPTN product.
- 6) Adhere to HRSA provided standard operating procedures (SOPs) for all relevant communications.

5.3.a.2 Use of Plain Language Guidelines and Other Government Laws and Regulations for all

Products The Contractor Shall:

- 1) Follow the federal Plain Language Guidelines when developing products. The Plain Language Act of 2010 requires federal agencies to create communications that are clear and understandable to the public.
- 2) Ensure that all materials adhere to the Government Printing and Binding Regulations, including the prohibition on commercial advertising, “No Government publication or other Government printed matter, prepared or produced with either appropriated or non-appropriated funds or identified with an activity of the Government, shall contain any advertisement inserted by or for any private individual, firm, or corporation; or contain material which implies in any manner that the Government endorses or favors any specific commercial product, commodity, or service.” -- (Title III--General Provisions, 13. Advertisements, Commercial.)
- 3) Ensure that all materials do not contain any non-federal logos outside of the OPTN (since contractor logos are a form of institutional advertising); that materials do not contain contact information for non-federal organizations outside of the OPTN or OPTN affiliated individuals.
- 4) Ensure that all materials adhere to the prohibition against referring to lobbying in materials produced with appropriated funds.

5.3.b. Coordination with Entities Supporting the OPTN

This subtask encompasses work and requirements to cooperate and collaborate with all entities supporting the OPTN. Entities supporting the OPTN include other contractors, government agencies, and any other entity identified by the COR as such.

The Contractor, at the direction of the COR, Shall:

- 1) Respond to HRSA requests for data, information, and other requested OPTN-related materials to support HRSA’s oversight and congressional, statutory, regulatory, financial and other reporting requirements.
- 2) Share contract data and information with other entities supporting the OPTN. This includes all information necessary for other entities supporting the OPTN to complete their work and providing access to OPTN data, process, and procedure documentation. NOTE: Any potential restrictions on the part of contractors to sharing data under a task order, including identification of proprietary information, must be stated in proposals at the time of task order solicitations.
- 3) Continually monitor, manage, and adjust processes, procedures, and functionality to integrate work with other entities supporting the OPTN.
- 4) Meet with other entities supporting the OPTN, estimated at once per month. The goal of these meetings will be to ensure coordination and strategic planning across the OPTN, including reporting on

- the status of deliverables, action items, OPTN shared metrics, integration efforts, and risk mitigation efforts.
- 5) Respond within three (3) business days to any request from the COR for information on cost or pricing related to OPTN policy proposals. The COR may provide a longer timeframe for more complex proposal requests. If additional time or clarity is needed to adequately respond, inform the COR within two (2) business days of either the estimated time needed to reply or the additional information necessary to respond.
 - 6) If requested, participate in up to two (2) retrospectives to work collaboratively with other entities supporting the OPTN to identify issues and achievements, develop recommendations for improvement, and report on outcomes.
 - 7) As necessary, enter into data use agreements for OPTN data with other entities supporting the OPTN, including implementing all appropriate privacy and security protections for OPTN-related materials.

5.4. General Contract Requirements

5.4.a. Records Management

5.4.a.1 Records and Information Regulation Guidelines

In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

5.4.a.2 Records and Information Management

The contractor shall manage and maintain Federal records and/or information, including electronic records and/or information, ensuing from this contract in accordance with all applicable records management laws and regulations, including but not limited to the Federal Records Act (44 U.S.C. Chapters. 21, 29, 31, 33); 36 CFR § 1236.20 What are appropriate record keeping systems for electronic records? & 1236.22 What are the additional requirements for managing electronic mail records? (<https://www.ecfr.gov/current/title-36/section-1236.22>); NARA Bulletin 2013-02, August 29, 2013, Guidance on a New Approach to Managing Email Records (<https://www.archives.gov/records-mgmt/bulletins/2013/2013-02.html>); and NARA Bulletin 2010-05 September 08, 2010 (<http://www.archives.gov/records-mgmt/bulletins/2010/2010-05.html>), Guidance on Managing Records in Cloud Computing Environments.

Managing the records includes, maintaining records to retain functionality and integrity throughout the records' full lifecycle including: (1) maintenance of links between records and metadata, and (2) categorization of records to manage retention and disposal, either through transfer of permanent records to NARA or deletion of temporary records in accordance with NARA-approved retention schedules.

5.4.a.3 Records and Information Management

The contractor (and/or subcontractor) shall ensure that all employees having access to (1) Federal information or a Federal information system, or (2) personally identifiable information (PII), complete the HHS Records Management Training before performing work under this contract, and thereafter

completing the annual refresher course during the life of the contract. The training is located at https://humancapital.learning.hhs.gov/courses/2025recordsmanagement/01_index.html. At the end of the Records Management training, the "Congratulations" slide is considered your certificate of completion. Please send the completion certificates to the Contracting Officer Representative (COR) of the contract. The listing of completed training shall be included in the first progress report. Any revisions to this listing as a result of staffing changes shall be submitted with next required progress report.

5.4.b. Personnel Security Requirements

5.4.b.1 Position Sensitivity Designations

All Contractor (and/or any subcontractor) employees must obtain a background investigation commensurate with their position sensitivity designation that complies with Parts 1400 and 731 of Title 5, Code of Federal Regulations (CFR). The following position sensitivity designation levels apply to this solicitation/contract:

non-sensitive, moderate risk public trust Tier 2 investigation or for those who will need network level admin rights it is a non-sensitive, high risk public trust Tier 4 investigation.

Background Investigation Requirements

All Contractor (and/or any subcontractor) employees must obtain a background investigation commensurate with their position sensitivity designation that complies with Parts 1400 and 731 of Title 5, Code of Federal Regulations (CFR).

Position Sensitivity Designations

The following position sensitivity designation levels apply to this solicitation/contract:

- non sensitive, moderate risk public trust Tier 2 investigation
- non sensitive, high risk public trust Tier 4 investigation (this level applies when elevated rights are needed for system access.)

5.4.b.2 Residency Requirements for Foreign Nationals

Under the requirements for fitness for duty as described in EO 13467 and in conjunction with Homeland Security Presidential Directive-12 (HSPD-12), OPM can complete a background investigation only for persons who have resided in the U.S. for a total of at least three (3) of the past five (5) years. The residency requirements apply only to foreign nationals. If any prospective foreign national contractor/subcontractor employee does not meet the residency requirements, please do not send their name forward as a potential team member.

5.4.b.3 Background Investigations

The Contractor shall advise its prospective employees about the background investigation requirements stated herein.

If a Contractor employee changes job responsibilities under this contract, the Contractor shall notify the COR, and the Government will make a determination whether an upgraded investigation is required.

In the event there are any proposed personnel changes in the Contractor's staffing roster previously submitted to the COR, the Contractor shall submit an updated roster to the COR, along with a brief explanation for the change. In turn, the COR will initiate the procedures stated herein to ensure any

new contractor employees completes the investigation process up to and including if needed, obtain a PIV card in a timely manner – prior to that individual commencing work under the contract.

For any individual who is cleared to start work but upon completion of the investigative process does not obtain a favorable background investigation he/she shall cease work on the contract immediately.

With the exception of costs associated with fingerprinting Contractor employees outside of the HRSA Personnel Security Office, the Government will conduct all required background investigations at no cost to the Contractor. The cost of fingerprinting Contractor employees at any location other than the HRSA Personnel Security Office will be borne by the Contractor. Every effort will be made to schedule contractors at a location that will not charge a fee for the fingerprints. Contractors who hold or have previously held a Government security clearance shall advise the HRSA Personnel Security Staff of the details of such clearance.

During a fingerprint appointment, each contractor employee must present two (2) forms of identification as part of the identity proofing process. One form of identification must be a State or federal government- issued photo identification document. Acceptable forms of identification are listed below.

List of acceptable documents for Identity Proofing one of which must be:

- Driver's License or ID card that is compliant with REAL-ID requirement
- US Passport or Passport Card
- Permanent Resident Card or Alien Registration Receipt Card (Form I-551)
- Employment Authorization Document that contains a photograph (Form I-766)
- US Military ID Card
- US Military dependents ID card
- PIV Card

Second form of ID can be one of the following:

- ID card issued by a federal, state, or local government agency or entity, provided that it contains a photograph
- Voter's registration card
- U.S. Coast Guard Merchant Mariner Card
- Certificate of U.S. Citizenship (Form N-560 or N-561)
- Certificate of Naturalization (Form N-550 or N-570)
- U.S. Citizen ID Card (Form I-197)
- Identification Card for Use of Resident Citizen in the United States (Form I-179)
- Certification of Birth Abroad or Certification of Report of Birth issued by the Department of State (Form FS-545 or Form DS-1350)
- Reentry Permit (Form I-327)
- Employment authorization document issued by the Department of Homeland Security (DHS)
- Driver's license issued by a Canadian government entity
- Native American tribal document
- U.S. Social Security Card issued by the Social Security Administration
- Original or certified copy of a birth certificate issued by a state, county, municipal authority, possession, or outlying possession of the United States bearing an official seal (if name is now different you must also provide the legal document that changed the name).

An individual who receives an unfavorable report may appeal that finding by submitting a written

request to the DSS at ps-updates@hrsa.gov. Background investigations will be conducted by the Defense, Counter Intelligence and Security Administration (DCSA)

5.4.b.4 Personal Identity Verifications (PIV) Cards

All Contractor employees (including subcontractors) must possess a PIV card that was issued based on a current background investigation that resulted in a favorable determination where one of the following applies:

- Will be working in HHS-owned or leased space (PIV card required)
- Will have access to HHS equipment or systems (PIV card required)

All PIV cards shall remain the property of the Federal Government. At any time, if a Contractor employee is terminated or otherwise ceases work under the contract, or no longer requires a PIV Card for contract performance purposes, the Contractor shall collect the individual's PIV card and immediately notify HRSA Personnel Security Staff in writing by submitting an email to ps-updates@hrsa.gov with copies to the respective COR and Contracting Officer. The Contractor shall immediately return the PIV Card(s) to the COR who will immediately return them to the Division of Security Services.

Like PIV Cards, other Government-issued Access Cards are Government property, Contractors and Contractor Employees are hereby placed on notice that any abuse, destruction, defacement, unauthorized transfer or withholding (i.e., failure to return to the Government) may be punishable to the greatest extent of the law.

Unauthorized possession of a PIV Card, or any other type of Government-issued Access Card, and/or willfully allowing any other person to have or to use your Access Card, is prohibited and can be criminally prosecuted under 18 U.S.C. §§ 499 and 70I, which prohibit photographing or otherwise reproducing or possessing HHS identification cards in an unauthorized manner, under penalty of fine, imprisonment, or both. Wrongdoers may also be held financially responsible for any/all civil and equitable remedies – to include, but not limited to, damages for any pecuniary loss suffered by the Government as a result of any of the above-listed actions or failure to act.

5.5. HHS Policy for Information Technology Procurements Security and Privacy Language

5.5.a. Procurements Requiring Information Security and/or Physical Access Security)

339.106-70 Information technology security and privacy clauses. (Deviation)

- (a) Contracting officers shall insert the clause at 352.239-71, Security Requirements for Information Technology Resources, in all solicitations, contracts, and orders exceeding the micro-purchase threshold that include information technology services, and the provision 352.239-72, Information Technology Security Plan and Accreditation, in all solicitations exceeding the micro-purchase threshold that include information technology services.
- (b) Contracting officers shall insert the clause at 352.239-73, Information System Design and Development, in solicitations, contracts, orders, and agreements where services to perform information system design and development are required.
- (c) Contracting officers shall insert the clause at 352.239-74, Information System Hosting, Operation, Maintenance or Use, in solicitations, contracts, orders, and agreements where services to perform information system hosting, operation, maintenance, or use are required.

- (d) Contracting officers shall insert the clause at 352.239-75, Security Controls Compliance Testing, in solicitations, contracts, orders, and agreements, when the clauses at 352.239-73, 352.239-74, 352.239-76, and/or 352.239-77 are inserted.
- (e) Contracting officers shall insert the clause at 352.239-76, Security Requirements for Government-Owned Contractor-Operated and Contractor-Owned Contractor-Operated Resources, in solicitations, contracts, orders, and agreements involving Government information processed with government-owned contractor-operated and contractor-owned contractor-operated resources.
- (f) Contracting officers shall insert the clause at 352.239-77, Cloud Computing Services, in solicitations, contracts, orders, and agreements involving cloud computing services.

1. SCHEDULE OF DELIVERABLES

The contractor shall ensure all products and services delivered under this contract are compliant with Section 508 in accordance with the Health and Human Services Acquisition Regulation (HHSAR). These Section 508 Standards were issued by the United States Access Board (<https://www.access-board.gov/>) and published in the Federal Register, on January 18, 2017, as the final rule (<https://www.access-board.gov/ict/>). The final rule updates the Section 508 Standards along with accessibility guidelines for telecommunication products and equipment covered by section 255 of the Communications Act.

The Section 508 Standards applicable to this contract are:

Section 508 Standards and Guidelines (<https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>)

- *Web Content Accessibility Guidelines (WCAG) 2.0*
- *Success Criteria, Level A and AA*
- *Chapter 3: Functional Performance Criteria (FPC)*
- *Chapter 4: Hardware (If Applicable)*
- *Chapter 5: Software*
- *Chapter 6: Support Documentation and Services*

Section 508 requires that all external public facing content and non-public facing official agency communications be accessible. Regardless of format, all digital content or communications materials produced as deliverables under this contract must conform to applicable Section 508 standards to allow federal employees and members of the public with disabilities to access information that is comparable to information provided to persons without disabilities.

The contractor shall complete and submit the applicable HHS Section 508 Accessibility Compliance Checklist per Section 508 deliverable. The checklist will serve as an artifact declaration of the Section 508 deliverable's compliance. Remediation of any Section 508 deliverables that do not comply with the applicable requirements as set forth below shall be the contractor's responsibility.

HHS guidance and checklists regarding accessibility of documents can be found at <https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>.

The HHS Section 508 Product Assessment Template (PAT) that is referenced above in 352.239-73 Electronic

Attachment A –Work Statement

Information and Technology Accessibility Notice, Paragraph (c), has been replaced with the Voluntary Product Accessibility Template Version (VPAT) 2.4 or later, and is considered to meet HHS PAT requirement. The new form can be downloaded from <https://www.itic.org/policy/accessibility/vpat..>

NOTE: ICT vs. EIT

Procurement documentation from HHS or other agencies may contain references to "EIT" (Electronic and Information Technology) and "ICT" (Information and Communications Technology). HHS considers these terms to be interchangeable, and "EIT" should always be interpreted to be "ICT" in any HHS procurement.

Table 1. Deliverables / Schedule for Tasks 5.1 – 5.5

Task	Deliverable	QTY	Format	Delivery Date
4.2	Draft Quality Control Plan (QCP)	1	Word	10 Business Days After Contract Award
4.2	Final Quality Control Plan	1	Word	10 Business Days After Receipt of COR Feedback
5.1.A	Discovery & Migration Assessment Report	1	Word + Excel	90 Days After Contract Award
5.1.B	Azure Landing Zone and System Architecture Document	1	Word + Visio	90 Days After Contract Award
5.1.C	Comprehensive Migration Plan	1	Word + Excel	90 Days After Contract Award
5.2.A	Security and Compliance Documentation	1	Word + Excel	150 Days After Contract Award
5.2.B	IaC Deployment Scripts and Configuration Baselines	1	Source code (Bicep/Terraform) + PDF Summary	150 Days After Contract Award
5.2.C	Comprehensive Migration Plan	1	Word + Excel	150 Days After Contract Award
5.2.D	Disaster Recovery and Failover Validation Report	1	PDF	150 Days After Contract Award
5.2.E	Access Control Matrix (ACM)	1	Excel	150 Days After Contract Award
5.2.E	Configuration Management Plan (CMP)	1	Word	150 Days After Contract Award
5.2.F	Tenant Hardening Implementation Report	1	PDF	150 Days After Contract Award
5.3.A	Updated Security Authorization (ATO) Package	1	Word + Signed PDF	270 Days After Contract Award
5.3.B	Migration Execution Plan and Logs	1	Word + CSV	270 Days After Contract Award
5.3.C	Testing and Validation Reports	1	PDF + Excel	270 Days After Contract Award
5.3.D	Cutover Plan and Completion Certificate	1	Word + Signed PDF	270 Days After Contract Award
5.3.E	Post-Migration Audit Report and Updated Security Docs	1	Word + Excel	270 Days After Contract Award
5.3.F	Change Control and Configuration Logs	1	CSV + PDF summary	270 Days After Contract Award
5.4.A	Post-Migration Validation Report	1	Word + Excel	270 Days After Contract Award

Attachment A –Work Statement

Task	Deliverable	QTY	Format	Delivery Date
5.4.B	Security Authorization Package (SSP, SAP, SAR, POA&M)	1	Word + PDF	390 Days After Contract Award
5.4.C	Training and Knowledge Transfer Materials	1	Word + Video	390 Days After Contract Award
5.4.D	Optimization and Cost Report	1	PDF + Excel	390 Days After Contract Award
5.4.E	Final Stabilization Report	1	Word	390 Days After Contract Award
5.5.a	Kick Off Meeting Agenda	1	Word	2 Business Days Before Kick-Off Meeting
5.5.a	Meeting Minutes	1	Word	2 Business Days After Kick-Off Meeting
5.5.b	Draft Project Management Plan (PMP)	1	Word	5 Business Days After Kick-Off Meeting
5.5.b	Final Project Management Plan (PMP)	1	Word	2 Business Days After Receipt of COR Feedback
5.5.c	Weekly Conference Call Agenda	1	Word	1 Business Day Before Each Call
5.5.c	Weekly Conference Call Summary	1	Word	2 Business Days After Each Meeting
5.5.c	Draft Quarterly Progress Report	1	Word	5 Business Days After the End of the Prior Quarter
5.5.c	Final Quarterly Progress Report	1	Word	5 Business Days After Receipt of COR Feedback
5.5.c	Draft Quarterly Progress Meeting Agenda	1	Word	2 Business Day Before Each Meeting
5.5.c	Final Quarterly Progress Meeting Agenda	1	Word	5 Business Days After Receipt of COR Feedback
5.5.c	Draft Quarterly Progress Report	1	Word	5 Business Days After the End of the Prior Quarter
5.5.c	Final Quarterly Progress Report	1	Word	5 Business Days After Receipt of COR Feedback
5.5.c	Draft Report	1	Word	30 Days Before the End of the Contract
5.5.c	Final Report	1	Word	5 Business Days After Receipt of COR Feedback
5.7.a	Records Management Training Records	1	PDF	Within 30 days after contract award and upon new staff onboarding and thereafter completing the annual refresher course during the life of the contract.
5.8.a	Procurements Requiring Information Security and/or Physical Access Security	See Table 2		

Task	Deliverable	QTY	Format	Delivery Date
5.8.b	EPLC Documents	1	Word	5 Business Days Before the Scheduled Gate Review
5.8.c	CPIC Documents	1	Word	5 th Business Day of Each Month

Table 2. Deliverables for Task 5.8.a

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
Roster	Roster	Within 14 days of the effective date of this contract.	Procurements Requiring Information Security and/or Physical Access Security
Contractor Employee Non-Disclosure Agreement (NDA)	Contractor Employee Non-Disclosure Agreement (NDA)	Prior to performing any work on behalf of HHS	Procurements Requiring Information Security and/or Physical Access Security
Privacy Threshold Analysis (PTA)/ Privacy Impact Assessment (PIA)	Assist in the completion of a PTA/PIA form	Within 60 days after contract award	Requirements for Procurements Involving Information Security and/or Physical Access Security
Training Records	Copy of training records for all may training	In conjunction with contract award and annually thereafter or upon request	Requirements for Procurements Involving Information Security and/or Physical Access Security

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
Rules of Behavior	Signed ROB for all employees	Initiation of contract and at least annually thereafter	Requirements for Procurements Involving Information Security and/or Physical Access Security
Incident Response	Incident Report (as incidents or breaches occur)	As soon as possible and without reasonable delay and no later than 1 hour of discovery	Requirements for Procurements Involving Information Security and/or Physical Access Security
Incident Response	Incident and Breach Response Plan	Upon request from government	Requirements for Procurements Involving Information Security and/or Physical Access Security
Personnel Security Responsibilities	List of Personnel with defined roles and responsibilities	Before an employee begins working on this contract.	Requirements for Procurements Involving Information Security and/or Physical Access Security
Personnel Security Responsibilities	Off-boarding documentation, equipment and badge when leaving contract	Within 14 days after the Government's final acceptance of the work under this contract, or in the event of a termination of the contract.	Requirements for Procurements Involving Information Security and/or Physical Access Security

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
Background Investigation	Onboarding documentation when beginning contract.	Prior to performing any work on behalf of HHS	Requirements for Procurements Involving Information Security and/or Physical Access Security
Certification of Sanitization of Government and Government Activity-Related Files, Information, and Devices. ^[28]	Form or deliverables required by OpDiv.	Within 14 days of the employee's exit from the contract	Requirements for Procurements Involving Information Security and/or Physical Access Security
Contract Initiation and Expiration	If the procurement involves a system or cloud service, additional documentation will be required, such as Disposition/Decommission Plan	Within 14 days of the employee's exit from the contract	Requirements for Procurements Involving Information Security and/or Physical Access Security
Assessment and Authorization (A&A)	A&A Package • SSP • SAR • POA&M • Authorization Letter • CP and CPT Report • E-Auth (if applicable) • PTA/PIA (if applicable) • Interconnection/Data Use Agreements (if applicable)	30 days prior to the Operational Readiness Review (ORR) to the Contracting Officer (CO) and/or Contracting Officers Representative (COR)	Requirements for Procurements Involving Government Information Processed on GOCO or COCO Systems

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
	• Authorization Letter • Configuration Management Plan (if applicable) • Configuration Baseline • Other OpDiv-specific documents		
Protection of Information in a Cloud Environment	Contract expiration	30 days prior to the Operational Readiness Review (ORR) to the Contracting Officer (CO) and/or Contracting Officers Representative (COR)	Requirements for Procurements Involving Cloud Services
A&A Process for Cloud Services	A&A Package • SSP • SAR • POA&M • CMP • CP and CPT Report • E-Auth (if applicable) • PTA/PIA (if applicable) • Penetration Test Results • Interconnection/Data Use/Agreements (if applicable) • Service Level Agreement • Authorization Letter	30 days prior to the Operational Readiness Review (ORR) to the Contracting Officer (CO) and/or Contracting Officers Representative (COR)	Requirements for Procurements Involving Cloud Services

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
	- Configuration Management Plan (if applicable) - Configuration Baseline - Other OpDiv-specific documents		
Reporting and Continuous Monitoring	- POA&M updates - Revised security documentation/Agreements	Monthly/as requested by HRSA	Requirements for Procurements Involving Government Information Processed on GOCO or COCO Systems & Requirements for Procurements Involving Cloud Services
Incident Reporting	- Incident reports (as needed) - Incident Response Plan	Incident Reports – must respond to all alerts/Indicators of Compromise (IOCs) provided by HHS Computer Security Incident Response Center (CSIRC)/HRSA Computer Security Incident Response Team (hrsacsirt@hrsa.gov) within 24 hours Report all suspected and confirmed information security and privacy incidents and breaches to the HRSA Computer Security Incident Response Team as soon as possible and without unreasonable delay, no later than one (1) hour Incident Response Plan - 30 days prior to the	Requirements for Procurements Involving Government Information Processed on GOCO or COCO Systems & Requirements for Procurements Involving Cloud Services

Policy Section	Deliverable Title/Description	Due Date	Applicable Section
		Operational Readiness Review (ORR) to the Contracting Officer (CO) and/or Contracting Officers Representative (COR)	
Other IT Procurements (Non-Commercial and Open Source Computer Software Procurements)	Computer software, including the source code.	Prior to performing any work on behalf of HHS	Requirements for Other IT Procurements

Attachment A

Deliverable	Ownership	Approach	Date
Planning Phase			
Project Management Plan (PMP)	Program Project Lead, Contractor	The Program project lead and the contractor will prepare the PMP after discussions with COR and appropriate stakeholders. The plan will also address the scope, budget and schedule.	Within 45 days after task is exercised
Project Work Breakdown Structure (WBS)/Schedule	Contractor	The Program Project Lead will develop a contract/project level WBS using Microsoft project software.	Within 45 days after task is exercised
Release WBS/Schedule	Contractor	The Program Project Lead will develop a schedule and detailed list of tasks for each of the major releases.	Based upon WBS
Project Budget	Program Project Lead, Contractor	The contractor will develop a detailed budget prior to the commitment of resources for any development activities.	Within 45 days after task is exercised
Schedule Activity List	Contractor	The Program Project Lead will develop a detailed list of activities in consultation with the stakeholders.	Once a month
Resource Requirements Log	Contractor	The Program Project Lead will develop a detailed software and hardware resource requirements as part of the infrastructure plan.	Based upon project plan
Risk Management Log	Program Project Lead, Contractor	The Program Project Lead will log all the major project risks in the risk log/register and communicate it to the stakeholders	Monthly (as well as when new risks are identified)
Training Plan	Program Project Lead, Contractor	A training plan will be developed which would provide details, including the training approach, training courses offered, duration of each course, intended audience(s).	Based upon project plan
Requirements Phase			
Business Process Definition (BPD)	Contractor	Based upon discussions with the business owners, this document will capture the appropriate business processes. This information will be used to drive additional requirements elaboration activities such as the creation of screen mockups.	Based upon project plan
Business System Requirements (BSR) Document	Contractor	A requirements document reflecting the high level capabilities and attributes of the desired solution will be created.	Based upon project plan

Release-Level Requirements /RTM	Contractor	This document will provide of the traceability of project level and release level requirements to the functionality contained within a specific release.	Based upon project plan
Logical Data Model	Contractor	The logical data model provides a way to represent the business processes (and depicts the relationship between them). This document will be used to further elaborate the system requirements.	Based upon project plan
Design Phase			
Technical Design Document (TDD)	Contractor	This document will explain the system design and architecture.	Based upon project plan
Physical Data Model	Contractor	The Physical Data Model will take the logical data model information and create the physical data model structures. This will be developed in compliance with all appropriate EHBs naming conventions and standards.	Based upon project plan
Data Dictionary	Contractor	This document would explain the detailed definitions for all tables and columns.	Based upon project plan
Test Phase			
Test Plan	Contractor	The test plan would define the overall plan for performing the QA testing activities for the project. It would contain the proposed testing approach, types of testing that will performed, and details about the testing tools that will be used..	Based upon project plan
Test Scripts/Cases	Contractor	Describes the detailed test scripts and test cases that will be used to validate that the system functions as expected. The contractor will work with the business owners to ensure that the test cases developed exercise all of the business areas/functions of the system.	Based upon project plan
Testing Defects Resolution Report	Contractor	An export of the issues from the issue tracker will be provided so the stakeholders can get the insight into the issues found during contractor's internal testing and their latest status.	Based upon project plan
Implementation/ Deployment Plan	Contractor	The implementation plan will provide details about how the system will be installed and made operational in the production environment for each of the major releases.	Based upon project plan
Operations & Maintenance Phase			

Attachment A –Work Statement

Operational Readiness Review	Program Project Lead, Contractor	The Review will ensure that configuration and testing have been completed, documentation has been written and approved, deployment packages have been written and tested, security testing completed, and all other EPLC requirements have been met.	Based upon project plan
Lessons Learned	Program Project Lead, Contractor	A lessons learned document will be created to understand what worked well (and what didn't) in the last release so that this experience can be used to improve the techniques used to develop future releases/systems.	45 days after production implementation
Patch Release/Deployment Plan	Contractor	This plan will provide the details about potential impacts/dependencies, and how to apply the patch in the production environment.	Based upon project plan

Attachment B:

Contractor Non-Disclosure Agreement

Information Technology Systems Security Contractor Non-Disclosure Agreement

Access to sensitive information (such as personally identifiable information [PII]), non-public information, confidential information, and/or Controlled Unclassified Information (CUI) from the files of the Department of Health and Human Services (HHS) is required in the performance of my official duties, under contract number _____ between (HHS/HRSA) _____ and my employer (Employer's Name) _____.

I agree that I shall not release, publish, or disclose such information to unauthorized personnel, and I shall protect such information in accordance with relevant laws and regulations.

I affirm that I have received a written and/or verbal briefing by my company concerning my responsibilities under this agreement. I understand that violation of this agreement may subject me to criminal and civil penalties.

Signed: _____

Type or Print Name: ____

Date: __

Witnessed by: _

Date: __

Copies are to be retained by:
HRSA Contracting Officer
Representative Contractor's Contract
Management Individual Signatory

ATTACHMENT C - DISCLOSURE OF LOBBYING ACTIVITIES

Complete this form to disclose lobbying activities pursuant to 31 U.S.C. 1352 (See reverse for public burden disclosure)

1. Type of Federal Action: _____ a. contract b. grant c. cooperative agreement d. loan e. loan guarantee f. loan insurance	2. Status of Federal Action: _____ a.bid/offer/application b.initial award c.post-award	3. Report Type: _____ a. initial filing b. material change For Material Change Only: year _____ quarter _____ date of last report _
4. Name and Address of Reporting Entity: ☐ Prime ☐ Subawardee Tier _____, <i>if known</i>: Congressional District, <i>if known</i>:	5. If Reporting Entity in No. 4 is Subawardee, Enter Name and Address of Prime: Congressional District, <i>if known</i>:	
6. Federal Department/Agency:	7. Federal Program Name/Description: CFDA Number, <i>if applicable</i>: _____	
8. Federal Action Number, if known:	9. Award Amount, <i>if known</i>: \$ _____	
10. a. Name and Address of Lobbying Entity (if individual, last name, first name, MI): <i>(attach Continuation Sheet(s) SF-LLL-A, if necessary)</i>	b. Individuals Performing Services (including address if different from No. 10a) <i>(last name, first name, MI):</i>	
11. Amount of Payment (check all that apply): \$ _____ ☐ actual ☐ planned	12. Type of Payment (check all that apply) ☐ a. retainer ☐ b. one-time fee ☐ c. commission ☐ d. contingent fee ☐ e. deferred ☐ f. other; specify _____	
13. Form of Payment (check all that apply): ☐ a. cash ☐ b. in-kind: specify: nature _____ value _____	14. Brief Description of Services Performed or to be Performed and Date(s) of Service, including officer(s), employee(s), or Member(s) contacted, for Payment indicated in Item 11:	

OPTN IT SYSTEMS CLOUD MIGRATION
ATTACHMENT C

(attach Continuation Sheet(s) SF-LLL-A, if necessary)

15. Continuation Sheet(s) SF-LLL-A attached: ☐ Yes ☐ No

16.

Signature: _____

Print Name: _____

Title: _____

Telephone No.: _____ Date: ____

Federal Use Only:

Authorized for Local
Reproduction
Standard Form - LLL

**INSTRUCTIONS FOR COMPLETION OF SF-LLL, DISCLOSURE OF LOBBYING
ACTIVITIES**

This disclosure form shall be completed by the reporting entity, whether subawardee or prime Federal recipient, as the initiation or receipt of a covered Federal action, or a material change to a previous filing, pursuant to title 31 U.S.C. section 1352. The filing of a form is required for each payment or agreement to make payment to any lobbying entity for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with a covered Federal action. Use the SF-LLL-A Continuation Sheet for additional information if the space on the form is inadequate. Complete all items that apply for both the initial filing and material change report. Refer to the implementing guidance published by the Office of Management and Budget for additional information.

1. Identify the type of covered Federal action for which lobbying activity is and/or has been secured to influence the outcome of a covered Federal action.
2. Identify the status of the covered Federal action.
3. Identify the appropriate classification of this report. If this is a follow-up report caused by a material change to the information previously reported, enter the year and quarter in which the change occurred. Enter the date of the last previously submitted report by this reporting entry for this covered Federal action.
4. Enter the full name, address, city, state and zip code of the reporting entity. Include Congressional District, if known. Check the appropriate classification of the reporting entity that designates if it is, or expects to be, a prime or subaward recipient. Identify the tier of the subawardee, e.g., the first subawardee of the prime is the first tier. Subawards include but are not limited to subcontracts, subgrants, and contract awards under grants.
5. If the organization filing the report in item 4 checks "Subawardee", then enter the full name, address, city, state and zip code of the prime Federal recipient. Include Congressional District, if known.
6. Enter the name of the Federal agency making the award or loan commitment. Include at least one organizational level below agency name, if known. For example, Department of Transportation, United States Coast Guard.
7. Enter the Federal program name or description for the covered Federal action (item 1). If known, enter the full Catalog of Federal Domestic Assistance (CFDA) number for grants, cooperative agreements, loans, and loan commitments.
8. Enter the most appropriate Federal identifying number available for the Federal action identified in item 1 (e.g., Request for Proposal (RFP) number; Invitation for Bid (IFB) number; grant announcement number; the contract, grant, or loan award number; the

application/proposal control number assigned by the Federal agency). Include prefixes, e.g., "RFP-DE-90-001".

9. For a covered Federal action where there has been an award or loan commitment by the Federal agency, enter the Federal amount of the award/loan commitment for the prime entity identified in item 4 or 5.
10. a. Enter the full name, address, city, state and zip code of the lobbying entity engaged by the reporting entity identified in item 4 to influence the covered Federal action.
 - a. Enter the full names of the individual(s) performing services, and include full address, if different from 10 (a). Enter Last Name, First Name, and Middle Initial (MI).
11. Enter the amount of compensation paid or reasonably expected to be paid by the reporting entity (item 4) to the lobbying entity (item 10). Indicate whether the payment has been made (actual) or will be made (planned). Check all boxes that apply. If this is a material change report, enter the cumulative amount of payment made or planned to be made.
12. Check the appropriate box(es). Check all boxes that apply. If payment is made through an in-kind contribution, specify the nature and value of the in-kind payment.
13. Check the appropriate box(es). Check all boxes that apply. If other, specify nature.
14. Provide a specific and detailed description of the services that the lobbyist has performed, or will be expected to perform, and the date(s) of any services rendered. Include all preparatory and related activity, not just time spent in actual contact with Federal officials. Identify the Federal official(s) or employee(s) contracted or the officer(s), employee(s), or Member(s) of Congress that were contacted.
15. Check whether or not a SF-LLL-A Continuation Sheet(s) is attached.
16. The certifying official shall sign and date the form; print his/her name, title, and telephone number.

Public reporting burden for this collection of information is estimated to average 30 minutes per response, including time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding the burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the Office of Management and Budget, Paperwork Reduction project (0348-0046), Washington, DC 20503.

ATTACHMENT D - CPARS INFORMATION SHEET

The Contractor Performance Assessment Reporting System (CPARS) is the Department of Defense (DoD) Enterprise Solution for collection of contractor Past Performance Information (PPI) as required by the Federal Acquisition Regulation (FAR). CPARS is a web-enabled application that collects and manages a library of automated contractor report cards. A report card assesses a contractor's performance and provides a record, both positive and negative, on a given contract for a specific period of time. Each report card is based on objective facts and is supported by program and contract management data. Use of CPARS promotes report card consistency, increases data integrity, and motivates improved contractor performance. For more information, see www.cpars.gov.

ATTACHMENT E - HHS SUBCONTRACTING PLAN TEMPLATE

*A Subcontracting Plan is required if the estimated cost of the contract **may exceed \$750,000 (\$1,500,000 for construction)** Small businesses are excluded.*

The following outline meets the minimum requirements of section 8(d) of the Small Business Act, as amended, and implemented by the Federal Acquisition Regulations (FAR) Subpart 19.7. The U.S. Department of Health and Human Services (HHS), Office of Small and Disadvantaged Business Utilization (OSDBU) recommends that offerors use the following format to submit proposed Individual Subcontracting Plans. It is not intended to replace any existing Corporate/Commercial Plan that is more extensive.

Questions should be forwarded to the Contracting Officer and/or Small Business Subcontracting Program Manager.

PROJECT INFORMATION			
Solicitation/Contract No.:		MOD No. (If applicable):	
Title of Acquisition:			
Contractor's Name:			
Period of Performance:		Total Contract Amount (including options, and any modifications if this submission is due to a modification):	
Total Modification Amount: (if applicable)	\$	Base Period (if there are options):	\$
Option 1 (if applicable):	\$	Option 2 (if applicable):	\$
Option 3 (if applicable):	\$	Option 4 (if applicable):	\$
FAR 52.217-8 (if applicable):	\$		
Contracting Officer/Specialist Name:			Tel & Fax:
OPDIV/Division/Branch (including location):			Email:

SUBCONTRACT PLAN REQUIREMENTS- *Failure to include the essential information of FAR Subpart 19.7 may be cause for either a delay in acceptance or the rejection of a bid or offer when a subcontracting plan is required. "SUBCONTRACT," as used in this clause, means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime contractor or subcontractor requesting supplies or services required for performance of the contract or subcontract.*

If assistance is needed to locate small business sources, contact the Small Business Specialist (SBS) supporting the OPDIV/STAFFDIV. SBS contact information is located on the OSDDBU website (<https://osdbu.hhs.gov>) or contact the HHS OSDDBU Customer Care Center at sbmail@hhs.gov or (202) 690-7300..

HHS currently has the following subcontracting goals for Fiscal Year **2026**:

Type of Concern	Goal (%)
Small Business	31.00%
Small Disadvantaged Business	8.45%
Women Owned Small Business	9.04%
Service Disabled Veteran Owned Small Business	3.00%
HUBZone	2.00%

For this procurement, or modification, HHS expects all proposed subcontracting plans to contain at a minimum the aforementioned percentages.

1. Type of Plan (check one):	Individual ☐ *Master (Addendum) ☐ *Commercial ☐ *When Master is checked, Individual must also be checked and submission must include both. *If Commercial is checked, please stop here and attach a copy of your commercial plan. For Informational Purposes: Individual plan - all elements developed specifically for this contract and applicable for the full term of this contract. Master plan - goals developed for this contract, all other elements standardized and approved by a lead agency Federal Official; must be renewed every three years and contractor must provide copy of lead agency approval. Commercial products/service plan - goals are negotiated with the initial agency on a company-wide basis rather than for individual contracts; this plan applies to the entire production of commercial service or items or a portion thereof. The contractor sells commercial products and services customarily used for non-government purposes. The plan is effective during the offeror's fiscal year.	
	2. Subcontracting Goal Data: (FAR19.702(a)(1-3) & FAR 52.219-9(d)(1)) Below indicate the dollar and percentage goals for Small Business (SB), Small Disadvantaged (SDB) including Alaska Native Corporations and Indian Tribes, Women-owned and Economically Disadvantaged Women-Owned (WOSB), Historically Underutilized Business Zone (HUBZone), Veteran Owned Small Business (VOSB), Service-Disabled Veteran-Owned (SDVOSB) Small Businesses and "Other than Small Business" (Other) as subcontractors. Indicate the base year and each option year, as specified in FAR 19.704. If any contract has more than four options, please attach additional sheets which illustrate dollar amounts and percentages. <u>PLEASE NOTE: Zero dollars is not an acceptable goal for the SB, SDB, WOSB, HUBZone, VOSB or SDVOSB categories since this does not demonstrate a good faith effort throughout the period of performance of the contract.</u>	% of Total Contract \$ If required by CO
	For Individual Plans complete a(1): (FAR 52.219-9(d)(2)(i)) a(1). Total dollars planned to be subcontracted under this contract is: \$ =2b+2h If your contract includes options, please include the break down here: Base Period: \$ Option Period 3: \$ Option Period 1: \$ Option Period 4: \$ Option Period 2: \$	For Individual Plan % If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %

b. Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes)-[Percentage of 2a.]: **(FAR 52.219-9(d)(2)(ii))**

\$ and %

If your contract includes options, please include the break down here:

Base: \$ and %
OPT 1: \$ and %
OPT 2: \$ and %
OPT 3: \$ and %
OPT 4: \$ and %

%

If options are applicable:

Base: %
OPT 1: %
OPT 2: %
OPT 3: %
OPT 4: %

and %		
c. Total dollars planned to be subcontracted to veteran-owned small business concerns- [Percentage of 2.a.]: (FAR 52.219-9(d)(2)(iii)) \$ and % If your contract includes options, please include the break down here: Base: \$ and % OPT 1: \$ and % OPT 2: \$ and % OPT 3: \$ and % OPT 4: \$ and %		% If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %
d. Total dollars planned to be subcontracted to service-disabled veteran-owned small business - [Percentage of 2.a.]: (FAR 52.219-9(d)(2)(iv)) \$ and % If your contract includes options, please include the break down here: Base: \$ and % OPT 1: \$ and % OPT 2: \$ and % OPT 3: \$ and % OPT 4: \$ and %		% If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %
e. Total dollars planned to be subcontracted to HUBZone small business concerns - [Percentage of 2.a.]: (FAR 52.219-9(d)(2)(v)) \$ and % If your contract includes options, please include the break down here: Base: \$ and % OPT 1: \$ and % OPT 2: \$ and % OPT 3: \$ and % OPT 4: \$ and %		% If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %

f. Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANC's and Indian tribes) - [Percentage of 2.a.]: **(FAR 52.219-9(d)(2)(vi))**

\$

and

%

% If your contract includes options,

please include the break down here:

Base: \$

and

%

OPT 1: \$

and

%

OPT 2: \$

and

%

OPT 3: \$

and

%

If options are applicable:

Base:

%

OPT 1:

%

OPT 2:

%

OPT 3:

%

OPT 4: \$ and %	OPT 4: %																																								
g. Total dollars planned to be subcontracted to women-owned small business concerns- [Percentage of 2.a.]: (FAR 52.219-9(d)(2)(vii)) \$ and % If your contract includes options, please include the break down here: Base: \$ and % OPT 1: \$ and % OPT 2: \$ and % OPT 3: \$ and % OPT 4: \$ and %	% If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %																																								
h. Total Subcontracting Dollars & Percentage with “Other” than Small Businesses (i.e., large companies, non profits, etc.) [Percentage of 2.a.]: (HHS OSDU) \$ and % If your contract includes options, please include the break down here: Base: \$ and % OPT 1: \$ and % OPT 2: \$ and % OPT 3: \$ and % OPT 4: \$ and %	% If options are applicable: Base: % OPT 1: % OPT 2: % OPT 3: % OPT 4: %																																								
i. Subcontracting Opportunities (description of all principal products/services to be subcontracted to all types of concerns listed in 2.b.-2.f.) (FAR 52.219-9(d)(3)): Provide a description of ALL the products and/or services to be subcontracted under this contract, and indicate the size and type of business supplying them (include all that apply):																																									
<table border="1" style="width: 100%; border-collapse: collapse; text-align: center;"> <thead> <tr style="background-color: #cccccc;"> <th style="width: 20%;">Products and/or Services</th> <th style="width: 10%;">Other</th> <th style="width: 10%;">Small Business</th> <th style="width: 10%;">SDB</th> <th style="width: 10%;">WOSB</th> <th style="width: 10%;">Hubz</th> <th style="width: 10%;">VOSB</th> <th style="width: 10%;">SDVOSB</th> </tr> </thead> <tbody> <tr> <td style="text-align: left; padding: 5px;">1</td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> </tr> <tr> <td style="text-align: left; padding: 5px;">2</td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> </tr> <tr> <td style="text-align: left; padding: 5px;">3</td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> </tr> <tr> <td style="text-align: left; padding: 5px;">4</td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> </tr> </tbody> </table>		Products and/or Services	Other	Small Business	SDB	WOSB	Hubz	VOSB	SDVOSB	1								2								3								4							
Products and/or Services	Other	Small Business	SDB	WOSB	Hubz	VOSB	SDVOSB																																		
1																																									
2																																									
3																																									
4																																									

5							
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j. Please describe the methodology used to develop goals & identify potential sources (e.g. historical trends, information on technical and competitive bidding, formula for calculating goals, etc.) (FAR 52.219-9(d)(4-5)):

k. Indirect costs have ☒ have not ☐ been included in the dollar and percentage subcontracting goals above (check one).

If indirect costs have been included in establishing subcontracting goals, please provide a description of the method used to determine the proportionate share of indirect costs to be incurred with all types of concerns listed in 2.b.-2.f. (FAR 52.219-9(d)(6)):

SUBCONTRACTING PLAN REQUIREMENTS (con't)

3. Please enter the following information for the individual who will administer your Subcontracting Program: (FAR 52.219-9(d)(7))

Name: Title:

Address:

Telephone: Email:

Duties: Does the individual named above have general overall responsibility for the company's subcontracting program, i.e., developing, preparing, and executing subcontracting plans and monitoring performance relative to the requirements of those subcontracting plans and perform the following duties? yes no

Additionally, please respond whether or not the individual who will administer your subcontracting program conducts the following:

1. Developing and promoting company-wide policy initiatives that demonstrate the company's support for awarding contracts and subcontracts to SB, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns; and for assuring that these concerns are included on the source lists for solicitations for products and services they are capable of providing; yes no ☐ ☐
2. Developing and maintaining bidder source lists of SB, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns from all possible sources; yes no
3. Ensuring periodic rotation of potential subcontractors on bidder's lists; yes no
4. Assuring that SB, SDB, WOSB, HUBZone, VOSB and SDVOSB businesses are included on the bidders' list for every subcontract solicitation for products and services that they are capable of providing. ☐ yes ☐ no
5. Ensuring that Requests for Proposals (RFPs) are designed to permit the maximum practicable participation of SB, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns. yes no
6. Reviewing subcontract solicitations to remove statements, clauses, etc., which might tend to restrict or prohibit small, 8(a), SDB, WOSB, HUBZone, VOSB and SDVOSB small business participation. yes no
7. Accessing various sources for the identification of SB, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns to include the System for Award Management (<http://sam.gov>), local small business and minority associations, local chambers of commerce and Federal agencies' Small Business Offices; yes no
8. Establishing and maintaining contract and subcontract award records; yes no
9. Participating in Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, Procurement Conferences, etc; yes no
10. Ensuring that SB, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns are made aware of subcontracting opportunities and assisting concerns in preparing responsive bids to the company; yes no

no

- ☐ ☐
11. Conducting or arranging for the conduct of training for purchasing personnel regarding the intent and impact of Section 8(d) of the Small Business Act, as amended; ☐ yes ☐ no
 12. Monitoring the company's subcontracting program performance and making any adjustments necessary to achieve the subcontract plan goals; ☐ yes ☐ no
 13. Preparing and submitting timely, required subcontract reports; ☐ yes ☐ no
 14. Conducting or arranging training for purchasing personnel regarding the intent and impact of 8(d) of the Small Business Act on purchasing procedures; and ☐ yes ☐ no
 15. Coordinating the company's activities during the conduct of compliance reviews by Federal agencies. ☐ yes ☐ no

(If **NO** is checked for any of the duties above, please provide who in the company performs those duties, or indicate why the duties are not performed in your company on a separate sheet of paper and submit with the proposed subcontracting plan.)

Additional duties of the individual:

4. Please describe your efforts to ensure that Small Businesses (incl. SDB, WOSB, HUBZone, SDVOSB) have an equitable opportunity to compete for subcontracts: **(FAR 52.219-9(d)(8))**

These efforts include, but are not limited to, the following activities:

- a. Outreach efforts to obtain sources: (1) Contact minority and small business trade associations; (2) contact business development organizations and local chambers of commerce; (3) attend SB, SDB, WOSB, HUBZone, VOSB and SDVOSB procurement conferences and trade fairs; (4) review sources from the System for Award Management (<http://www.sam.gov>); (5) review sources from the Small Business Administration (SBA), Dynamic Small Business Search database (DSBS) <http://dsbs.sba.gov/>; and (6) Utilize newspaper and magazine ads to encourage new sources.
- b. Internal efforts to guide and encourage purchasing personnel: (1) Conduct workshops, seminars and training programs; (2) Establish, maintain, and utilize SB, SDB, WOSB, HUBZone, VOSB and SDVOSB source lists, guides, and other data for soliciting subcontractors; and (3) Monitor activities to evaluate compliance with the subcontracting plan.

Efforts Described:

5. Flow Down Clause: **(FAR 52.219-9(d)(8))**

The contractor agrees to include the provisions under FAR 52.219-8, "Utilization of Small Business Concerns," in all acquisitions exceeding the simplified acquisition threshold that offers further subcontracting opportunities. All subcontractors, except small business concerns, that receive subcontracts in excess of \$750,000 (\$1,500,000 for construction) must adopt and comply with a plan similar to the plan required by FAR 52.219-9, "Small Business Subcontracting Plan." Note: In accordance with FAR 52.212-5(e) and 52.244-6(c)(2) the contractor is not required to include flow-down clause FAR 52.219-9 if it is subcontracting commercial items.

6. Reporting and Cooperation: **(FAR 52.219-9(d)(10)); (FAR 19.704(a)(10))**

The contractor gives assurance of 1) cooperation in any studies or surveys that may be required; 2) submission of periodic reports which illustrate compliance with the subcontracting plan; 3) submission of its Individual Subcontracting Report (ISR) and Summary Subcontract Report (SSR); and 4) subcontractors submission of ISRs and SSRs. ISRs and SSRs shall be submitted via the Electronic Subcontracting Reporting System (eSRS) website https://esrs.symlicity.com/index?_tab=signin&cck=1

Please refer to FAR Part 19.7 or contact the Contracting Officer for regulatory reporting requirements and other obligations you are accepting as part of your signing of this document and acceptance of any subsequent contract award that may be granted.

7. Record keeping: **(FAR 52.219-9(d)(11))**

FAR 52.219-9(d)(11) requires a list of the types of records your company will maintain to demonstrate the procedures adopted to comply with the requirements and goals in the subcontracting plan.

Contractor acknowledges and agrees to record keeping obligation expressed at FAR 52.219-9(d)(11). yes no

8. Assurances of Good Faith Effort, and the submission of explanations when failing to acquire as stated in Good Faith Effort: **(FAR 52.219-9(d)(12-13))**

Contractor hereby makes the following assurances:

(1) that contractor will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal yes ☒ no ☐ ; and ☐ ☐

(2) that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work within 30 days of contract completion and as required under FAR 19.7. yes ☒ no ☐

9. Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor: **(FAR 52.219-9(d)(14))**

Contractor hereby makes the assurance that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor. yes ☐ no ☒

10. Assurances of Timely Payments to Subcontractors: **(FAR 52.219-9(d)(15))**

FAR 19.702 requires your company to establish and use procedures to ensure the timely payment of amounts due pursuant to the terms of your subcontracts with SB concerns, SDB, WOSB, HUBZone, VOSB and SDVOSB concerns.

Your company has established and use such procedures yes ☒ no ☐ . Additionally, Contractor makes an assurance that Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify

☐ the contracting officer when the prime contractor makes either a reduced or an untimely payment to a small
☐ business subcontractor yes no .

Signature Page

1. Contractor makes the following representation: I have reviewed FAR Part 19.704 and FAR Clause 52.219-9, and this Subcontracting Plan ☐ is in compliance. yes no

This Subcontracting Plan was submitted by:

Name: Title:
Signature:
Address:
Telephone: Email: